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ADDENDUM

Contract #00000000000000000000060243

This Addendum is entered into by and between Indiana Family and Social Services Administration (“FSSA”), Division of Family Resources (“DFR”) ("the State") and the entity designated as "the Contractor" below. In consideration of those mutual undertakings and covenants, the parties agree as follows:

The purpose of this Addendum is to modify, delete, or amend certain terms and conditions set forth in the attached Form Contract prepared by the Contractor (the "Form Contract"). This Addendum and the Form Contract are incorporated into each other and, when read together, shall constitute one integrated document ("this Contract"). Any inconsistency, conflict, or ambiguity between this Addendum and the Form Contract shall be resolved by giving precedence and effect to this Addendum.

Contractor Name: West Publishing Corporation, a Thomson Reuters business

Contractor Address: 610 Opperman Drive, Eagan, MN 55123

Title of Form Contract: **West Publishing Corporation Statement of Work (SOW)**

1. By mutual agreement of the parties, the following terms and conditions are deleted from the Form Contract:

A. Any provision requiring the State of Indiana to provide insurance;

B. Any provision requiring the State of Indiana to provide indemnity;

C. Any provision providing that the Contract be construed in accordance with laws other than those of the State of Indiana;

D. Any provision providing that suit be brought in any state other than Indiana;

E. Any provision providing for resolution of contract disputes;

F. Any provision requiring the State of Indiana to pay any taxes;

G. Any provision requiring the State of Indiana to pay penalties, liquidated damages, interest or attorney's fees;

H. Any provision modifying the applicable Indiana statute of limitations;

I. Any provision relating to the time within which a claim must be made;

J. Any provision requiring payment of consideration in advance unless authorized by an exception listed in IC § 4-13-2-20;

K. Any provision limiting disclosure of the contract in violation of the Access to Public Records Act, IC § 5-14-3. This is a Public Contract and will be posted on the transparency portal as required by Executive Order 05-07 and IC § 5-14-3.5-2;

L. Any provision requiring payment in less than 35 days;

M. Any provision providing for automatic renewal; and

N. Any provision giving the Form Contract precedence over this Addendum.

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2. **Form Contract/Duties of Contractor.** The Contractor shall provide to FSSA/DFR its fraud analytics and case management solutions, together with related implementation services, as detailed in **Form Contract—West Publishing Corporation Statement of Work**, which is attached hereto and incorporated herein. Additionally, the Contractor shall be performing its work in compliance with the Indiana Office of Technology's ("IOT") Cloud Services requirements, as detailed in **Exhibit 1—State of Indiana Additional Terms and Conditions Software as a Service Engagements**, which is attached hereto and incorporated herein.

3. **Term.** This Contract begins on **November 1, 2021** and ends **October 31, 2023**.

4. **Consideration.** Total consideration for term of this Contract is **$744,000.00**. The Contractor shall be paid as detailed in the Form Contract—West Publishing Corporation Statement of Work.

5. **Access to Records.** The Contractor and its subcontractors, if any, shall maintain all books, documents, papers, accounting records, and other evidence pertaining to all costs incurred under this Contract. They shall make such materials available at their respective offices at all reasonable times during this Contract, and for three (3) years from the date of final payment under this Contract, for inspection by the State or its authorized designees. Copies shall be furnished at no cost to the State if requested.

6. **Assignment; Successors.**

   A. The Contractor binds its successors and assignees to all the terms and conditions of this Contract. The Contractor may assign its right to receive payments to such third parties as the Contractor may desire without the prior written consent of the State, provided that the Contractor gives written notice (including evidence of such assignment) to the State thirty (30) days in advance of any payment so assigned. The assignment shall cover all unpaid amounts under this Contract and shall not be made to more than one party.

   B. The Contractor shall not assign or subcontract the whole or any part of this Contract without the State's prior written consent. Additionally, the Contractor shall provide prompt written notice to the State of any change in the Contractor's legal name or legal status so that the changes may be documented and payments to the successor entity may be made.

7. **Assignment of Antitrust Claims.** As part of the consideration for the award of this Contract, the Contractor assigns to the State all rights, title and interest in and to any claims the Contractor now has, or may acquire, under state or federal antitrust laws relating to the products or services which are the subject of this Contract.

8. **Audits.** The Contractor acknowledges that it may be required to submit to an audit of funds paid through this Contract. Any such audit shall be conducted in accordance with IC § 5-11-1, et seq., and audit guidelines specified by the State.

   The State considers the Contractor to be a "Contractor" under 2 C.F.R. 200.330 for purposes of this Contract. However, if it is determined that the Contractor is a "subrecipient" and if required by applicable provisions of 2 C.F.R. 200 (Uniform Administrative Requirements, Cost Principles, and Audit Requirements), Contractor shall arrange for a financial and compliance audit, which complies with 2 C.F.R. 200.500 et seq.

9. **Authority to Bind Contractor.** The signatory for the Contractor represents that he/she has been duly authorized to execute this Contract on behalf of the Contractor and has obtained

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all necessary or applicable approvals to make this Contract fully binding upon the Contractor when his/her signature is affixed and accepted by the State.

10. **Changes in Work.** The Contractor shall not commence any additional work or change the scope of the work until authorized in writing by the State. The Contractor shall make no claim for additional compensation in the absence of a prior written approval and amendment executed by all signatories hereto. This Contract may only be amended, supplemented or modified by a written document executed in the same manner as this Contract.

11. **Compliance with Laws.**

A. The Contractor shall comply with all applicable federal, state, and local laws, rules, regulations, and ordinances, and all provisions required thereby to be included herein are hereby incorporated by reference. The enactment or modification of any applicable state or federal statute or the promulgation of rules or regulations thereunder after execution of this Contract shall be reviewed by the State and the Contractor to determine whether the provisions of this Contract require formal modification.

B. The Contractor and its agents shall abide by all ethical requirements that apply to persons who have a business relationship with the State as set forth in IC § 4-2-6, et seq., IC § 4-2-7, et seq. and the regulations promulgated thereunder**. If the Contractor has knowledge, or would have acquired knowledge with reasonable inquiry, that a state officer, employee, or special state appointee, as those terms are defined in IC § 4-2-6-1, has a financial interest in the Contract, the Contractor shall ensure compliance with the disclosure requirements in IC § 4-2-6-10.5 prior to the execution of this Contract.** If the Contractor is not familiar with these ethical requirements, the Contractor should refer any questions to the Indiana State Ethics Commission or visit the Inspector General's website at http://www.in.gov/ig/. If the Contractor or its agents violate any applicable ethical standards, the State may, in its sole discretion, terminate this Contract immediately upon notice to the Contractor. In addition, the Contractor may be subject to penalties under IC §§ 4-2-6, 4-2-7, 35-44.1-1-4, and under any other applicable laws.

C. The Contractor certifies by entering into this Contract that neither it nor its principal(s) is presently in arrears in payment of taxes, permit fees or other statutory, regulatory or judicially required payments to the State of Indiana. The Contractor agrees that any payments currently due to the State may be withheld from payments due to the Contractor. Additionally, further work or payments may be withheld, delayed, or denied and/or this Contract suspended until the Contractor is current in its payments and has submitted proof of such payment to the State.

D. The Contractor warrants that it has no current, pending or outstanding criminal, civil, or enforcement actions initiated by the State, and agrees that it will immediately notify the State of any such actions. During the term of such actions, the Contractor agrees that the State may delay, withhold, or deny work under any supplement, amendment, change order or other contractual device issued pursuant to this Contract.

E. If a valid dispute exists as to the Contractor's liability or guilt in any action initiated by the State or its agencies, and the State decides to delay, withhold, or deny work to the Contractor, the Contractor may request that it be allowed to continue, or receive work, without delay. The Contractor must submit, in writing, a request for review to the Indiana Department of Administration (IDOA) following the procedures for disputes outlined herein. A determination by IDOA shall be

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binding on the parties. Any payments that the State may delay, withhold, deny, or apply under this section shall not be subject to penalty or interest, except as permitted by IC § 5-17-5.

F. The Contractor warrants that the Contractor and its subcontractors, if any, shall obtain and maintain all required permits, licenses, registrations, and approvals, and shall comply with all health, safety, and environmental statutes, rules, or regulations in the performance of work activities for the State. Failure to do so may be deemed a material breach of this Contract and grounds for immediate termination and denial of further work with the State.

G. The Contractor affirms that, if it is an entity described in IC Title 23, it is properly registered and owes no outstanding reports to the Indiana Secretary of State.

H. As required by IC § 5-22-3-7:

(1) The Contractor and any principals of the Contractor certify that:

A. the Contractor, except for de minimis and nonsystematic violations, has not violated the terms of:

i. IC § 24-4.7 [Telephone Solicitation Of Consumers];

ii. IC § 24-5-12 [Telephone Solicitations]; or

iii. IC § 24-5-14 [Regulation of Automatic Dialing Machines];

in the previous three hundred sixty-five (365) days, even if IC § 24-4.7 is preempted by federal law; and

B. the Contractor will not violate the terms of IC § 24-4.7 for the duration of the Contract, even if IC § 24-4.7 is preempted by federal law.

(2) The Contractor and any principals of the Contractor certify that an affiliate or principal of the Contractor and any agent acting on behalf of the Contractor or on behalf of an affiliate or principal of the Contractor, except for de minimis and nonsystematic violations,

A. has not violated the terms of IC § 24-4.7 in the previous three hundred sixty-five (365) days, even if IC § 24-4.7 is preempted by federal law; and

B. will not violate the terms of IC § 24-4.7 for the duration of the Contract, even if IC § 24-4.7 is preempted by federal law.

12. Condition of Payment. All services provided by the Contractor under this Contract must be performed to the State's reasonable satisfaction, as determined at the discretion of the undersigned State representative and in accordance with all applicable federal, state, local laws, ordinances, rules and regulations. The State shall not be required to pay for work found to be unsatisfactory, inconsistent with this Contract or performed in violation of any federal, state or local statute, ordinance, rule or regulation.

13. Confidentiality of State Information. Terms used, but otherwise not defined in this Contract shall have the same meaning as those found in 45 CFR Parts 160, 162, and 164, and 45 CFR Subtitle A.

A. "HIPAA" means the Health Insurance Portability and Accountability Act of 1996 (sections 1171 through 1179 of the Social Security Act), including any subsequent amendments to such Act.

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B. "HIPAA Rules" mean the rules adopted by and promulgated by the US Department of Health and Human Services ("HHS") under HIPAA and other relevant federal laws currently in force or subsequently made, such as the Health Information Technology for Economic and Clinical Heath Act ("HITECH"), as enumerated under 45 CFR Parts 160, 162, and 164, including without limitation any and all additional or modified regulations thereof. Subsets of the HIPAA Rules include:

1) "HIPAA Enforcement Rule" as defined in 45 CFR Part 160;
2) "HIPAA Security Rule" as defined in 45 CFR Part 164, Subparts A and C;
3) "HIPAA Breach Rule" as defined in 45 CFR Part 164, Subparts A and D; and
4) "HIPAA Privacy Rule" as defined in 45 CFR Part 164, Subparts A and E.

C. If Contractor's services under this Contract includes State authorized access to and use of PHI on the State's behalf then Contractor is hereby deemed a Business Associate to the State and, as such, Contractor is hereby authorized by the State to create, receive, maintain, and/or transmit Protected Health Information ("PHI") on the State's behalf pursuant to and consistent with the Services performed by Contractor under this Contract.

D. Contractor is hereby authorized by the State to create, receive, maintain, use and/or transmit Personally Identifiable Information ("PII"; meaning personal information as collectively defined in IC 4-1-6-1 and IC 4-1-11-3, and under the National Institute of Standards and Technology ("NIST") Special Publication 800-122) on the State's behalf pursuant to and consistent with the Services performed by Contractor under this Contract. As used here, PII includes PHI, SSA-data, and ACA PII (as defined herein) as applicable, whether or not separately stated. All such PII is and remains the property of the State.

E. Contractor understands that pursuant to and consistent with the services performed by Contractor under this Contract, Contractor may be permitted authorized access to data obtained by the State from the Social Security Administration ("SSA-data"). In this regard and to the extent that Contractor is permitted authorized access and use of SSA-data:

(1) Contractor agrees that it will comply with the provisions of the Computer Matching and Privacy Protection Act Agreement ("CMPPA") and the Information Exchange Agreement ("IEA") executed between the Social Security Administration ("SSA") and the State; these agreements are incorporated herein by reference and current copies of the CMPPA and IEA are attached to this Contract;
(2) Contractor further agrees that it will abide by all relevant Federal laws and restrictions on access, use, and disclosure of SSA-data, including the security requirements enumerated in the CMPPA and IEA;
(3) Contractor understands that its access, use, or disclosure of SSA-data in a manner or purpose not authorized by the CMPPA or IEA may subject Contractor, including Contractor's employees, agents, and subcontractors, to civil and criminal sanctions pursuant to applicable Federal statutes; and,
(4) Contractor understands that the State, in compliance with the CMPPA, will undertake a review of Contractor's compliance with Contractor's obligations under the CMPPA, IEA, and this Contract no less than triennially; Contractor agrees to fully cooperate with the State in such reviews. Such reviews may be undertaken by the State in addition to or as part of other reviews of Contractor's privacy and security policies, procedures, and practices undertaken by the State pursuant to this Contract.

F. Contractor agrees that as a Business Associate to the State it is obligated to comply with the HIPAA Rules, as such Rules apply to Business Associates, throughout the term of this Contract and thereafter as may be required by federal law and such compliance will be at Contractor's sole expense. Further:
1) Contractor will not use or further disclose PHI or PII except as expressly permitted by this Contract or as required by law. It is further provided that nothing in this Contract shall

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be construed to permit Contractor use or disclose PHI in a manner that would violate the provisions of the HIPAA Privacy Rule as such Rule applies to the State with regard to the Services performed by Contractor under this Contract or otherwise cause the State to be non-compliant with the HIPAA Privacy Rule.

2) Contractor understands it must fully comply with the HIPAA Security Rule and will employ appropriate and compliant safeguards to reasonably prevent the use or disclosure of PHI and PII other than as permitted by this Contract or required by the HIPAA Privacy Rule or other applicable Federal or state law or regulation. Such safeguards will be designed, implemented, operated, and managed by Contractor at Contractor's sole expense and following the Contractor's best professional judgment regarding such safeguards. Upon the State's reasonable request, Contractor will review such safeguards with the State.
3) Contractor understands that it is subject to the HIPAA Enforcement Rule under which Contractor may be subject to criminal and civil penalties for violations of and non-compliance with the HIPAA Rules.

G. Improper Disclosure, Security Incident, and Breach Notification.

1) As a Business Associate, Contractor understands that it is subject to the HIPAA Breach Rule.
    i. For the purposes of this Contract, the term Breach has the same meaning as defined in the HIPAA Breach Rule with respect to PHI and with respect to PII also means the compromise, unauthorized disclosure, unauthorized access, loss of control, or any similar term or phrase that refers to situations where persons other than authorized users or for an other-than-authorized purpose have access or potential access to PII, whether physical or electronic.
2) “Security Incident” means a violation or imminent threat of violation of a security policy, acceptable use policies, or standard security practices, inclusive of the act of violating an explicit or implied security policy, which includes attempts (either failed or successful) to gain unauthorized access to a system or its data; unwanted disruption or denial of service; the unauthorized use of a system for the processing or storage of data; changes to system hardware, firmware, or software characteristics without the owner’s knowledge, instruction, or consent; loss of PII or other sensitive data through theft or device misplacement, loss or misplacement of hardcopy documents, and misrouting of mail (physical or electronic), all of which may have the potential to put PII or other sensitive data at risk of or expose PII/other sensitive data to an opportunity for unauthorized access, use, disclosure, modification, or destruction.
3) If a Security Incident occurs or if Contractor suspects that a Security Incident may have occurred with respect to PII in Contractor’s safekeeping or as otherwise being legitimately used by Contractor in Contractor’s performance of its services under this Contract:
    a) Contractor shall notify the State of the Security Incident within one (1) business day of when Contractor discovered the Security Incident; such notification shall be made to the FSSA Privacy & Security Office in a manner reasonably prescribed by the FSSA Privacy & Security Officer and shall include as much detail as the Contractor reasonably may be able to acquire within the one (1) business day.
    b) For the purposes of such Security Incidents, "discovered" and "discovery" shall mean the first day on which such Security Incident is known to the Contractor or, by exercising reasonable diligence, would have been known to the Contractor. Regardless of whether the Contractor failed to exercise reasonable diligence, improperly delaying the notification of discovery beyond the one (1) day requirement, the Contractor will notify the FSSA Privacy & Security Office within one (1) day of gaining actual knowledge of a Security Incident.
    c) In collaboration with the FSSA Privacy & Security Office, Contractor shall undertake all commercially reasonable efforts necessary to thoroughly investigate the Security Incident and to provide all results of such investigation to the FSSA Privacy & Security Office, including but not limited to Contractor personnel involved, source and cause of the Security Incident, specific information disclosed or possibly exposed, disclosure victims (those whose PII was disclosed or may have been disclosed or

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exposed to unauthorized access/use), disclosure recipients, supporting materials, actions taken to mitigate or stop the Security Incident, and similar details.

d) Contractor's investigation must be undertaken expeditiously and completed to the extent that a determination of whether a Breach has occurred can be reasonably made, including the identification of the victims or likely victims, within a reasonable timeframe as mutually agreed upon with the FSSA Privacy & Security Office, from the date of discovery of the Security Incident. Contractor shall provide details of its investigation to the FSSA Privacy & Security Office on an ongoing basis until the investigation is complete.

e) Contractor and the FSSA Privacy & Security Office will collaborate on the results of Contractor's investigation; the determination as to whether a Breach has occurred rests solely with the FSSA Privacy & Security Office.

f) If it is determined by the FSSA Privacy & Security Office that a Breach has occurred:

(i) Contractor agrees that it shall be responsible for, including all costs with respect to, fulfilling the State's and/or Contractor's obligations for notice to all of the known and suspected victims of the Breach. Such notice shall comply with the HIPAA Breach Rule notification requirements and/or applicable notification requirements under State law or regulation.

(ii) Contractor further agrees that such notification will be made under its name, unless otherwise specified by the FSSA Privacy & Security Office. Contractor will coordinate its Breach notification efforts with the FSSA Privacy & Security Office; the FSSA Privacy & Security Office will approve Contractor's Breach notification procedures and plans, including the format and content of the notice(s) prior to such notification being made.

(iii) Contractor accepts full responsibility for the Breach and any resulting losses or damages incurred by the State or any victim of the Breach.

(iv) Contractor will undertake all commercially reasonable efforts necessary to mitigate any deleterious effects of the Breach for the known and suspected victims of the Breach.

(v) The State, through the FSSA Privacy & Security Office, will make the appropriate notifications to HHS and/or the applicable Federal or State agencies with respect to the Breach, unless the Contractor is directed to do so by the FSSA Privacy & Security Office.

g) Contractor will undertake commercially reasonable corrective actions to eliminate or minimize to the greatest degree possible the opportunity for an identified Security Incident to reoccur and provide the FSSA Privacy & Security Office with its plans, status updates, and written certification of completion regarding such corrective actions.

2) If Contractor observes or otherwise becomes aware of a Security Incident or suspected Security Incident outside of Contractor's scope of responsibilities under this Contract (for example, affecting PII not in Contractor's safekeeping), Contractor agrees to promptly report such Security Incidents to the FSSA Privacy & Security Office and cooperate with the FSSA Privacy & Security Office's investigation of the Security Incident.

H. Subcontractors. Contractor agrees that in accordance with the HIPAA Privacy Rule, CMPPA, IEA, and 45 CFR §155.260 any subcontractors engaged by Contractor (in compliance with this Contract) that will create, receive, maintain, use or transmit State PHI/PII on Contractor's behalf will contractually agree to the same restrictions, conditions, and requirements that apply to Contractor with respect to such PHI/PII.

I. Access by Individuals to their PHI/PII. Contractor acknowledges that in accordance with the HIPAA Privacy Rule and 470 IAC 1-3-1, *et seq*, individuals for whom Contractor has direct

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possession of their PHI/PII on the State's behalf have the right to inspect and amend their PHI/PII and have the right for an accounting of uses and disclosures of such PHI/PII, except as otherwise provided therein. Contractor shall provide such right of inspection, amendment, and accounting of disclosures to such individuals upon reasonable request by the State (or by such individuals if the State directly refers such individuals to Contractor). In situations in which Contractor does not have direct possession of such PHI/PII, then the State shall be responsible for such inspection, amendment, and accounting of disclosures rights by individuals.

J. Access to Records. Contractor shall make available to HHS and/or the State and/or other Federal agencies so authorized by law, Contractor's internal practices, books, and records relating to the use and disclosure of PHI and PII provided to Contractor by the State or created, received, maintained, used, or transmitted by Contractor on the State's behalf. Contractor shall promptly inform the State by giving notice to the FSSA Privacy & Security Office of any request by HHS (or its designee), other State agencies, or other Federal agencies for such internal practices, books, and/or records and shall provide the State with copies of any materials or other information made available to such agencies.

K. Return of Protected Health Information. Upon request by the State or upon termination of this Contract, Contractor will, at the State's sole option, either return or destroy all copies of any PHI or PII provided to Contractor by the State, including PHI or PII created, received, maintained, used or transmitted by Contractor on the State's behalf and Contractor shall warrant in writing that it has returned or destroyed such PHI and/or PII. Further, upon termination of this agreement Contractor will not retain any copies of any such PHI and PII and shall warrant same in writing.

L. At the sole discretion of the State, the State may terminate this Contract for Contractor's material breach of this Section 13.

M. Contractor agrees to participate in a disaster recovery plan, as appropriate to the Contractor's Services, as determined by the State to be necessary to uphold integral business functions in the event of an unforeseen disaster.

N. Drug and Alcohol Records. In the performance of the Services under this Contract, Contractor may have access to confidential information regarding alcohol and drug abuse patient records. Contractor agrees that such information is confidential and protected information and promises and assures that any such information, regardless of form, disclosed to Contractor for the purposes of this Contract will not be disclosed or discussed with others without the prior written consent of the State. The Contractor and the State will comply with the applicable requirements of 42 CFR Part 2 and any other applicable federal or state law or regulatory requirement concerning such information. The Contractor will report any unauthorized disclosures of such information in compliance with this Section.

O. Confidentiality of State Information. The Contractor understands and agrees that data, materials, and information disclosed to the Contractor may contain confidential and protected information. The Contractor covenants that data, material and information gathered, based upon or disclosed to the Contractor for the purpose of this Contract, will not be disclosed to or discussed with third parties without the prior written consent of the State.

The parties acknowledge that the services to be performed by Contractor for the State under this contract may require or allow access to data, materials, and information containing Social Security numbers maintained by the State in its computer system or other records. In addition to the covenant made above in this section and pursuant to 10 IAC 5-3-1(4), the Contractor and the State agree to comply with the provisions of IC 4-1-10 and IC 4-1-11. If any Social Security number(s) is/are disclosed by Contractor, Contractor agrees to pay the cost of the notice of disclosure of a breach of the security of the system in addition to any

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other claims and expenses for which it is liable under the terms of this contract. The Contractor shall report any unauthorized disclosures of Social Security numbers to the FSSA Privacy & Security Office within one (1) business day of the date of discovery in accordance with this Section.

P. Contractor will indemnify and hold the State harmless from any loss, damage, costs, expense, judgment, sanction or liability, including, but not limited to, attorneys' fees and costs, that the State incurs or is subject to, as a result of a breach of this Section by the Contractor or any subcontractor, agent or person under Contractor's control. In the event a claim is made against the State for any such claim, cause of action, liability, damage, cost or expense, State may, at its sole option: (i) tender the defense to Contractor, who shall provide qualified and competent counsel to represent the State interest at Contractor's expense; or (ii) undertake its own defense, utilizing such professionals as it deems reasonably necessary, holding Contractor responsible for all reasonable costs thereof. In any event, State shall have the sole right to control and approve any settlement or other compromise of any claim brought against it that is covered by this Section.

Q. Contractor shall adhere to all relevant State and FSSA Privacy and Security Policies (written copies of such policies and procedures will be provided by the State and are available at https://www.in.gov/fssa/security-policies/) for any related activities provided to FSSA under this contract. Contractor is responsible for verifying that any subcontractors they engage will also comply with these policies. Any exceptions to these policies require written approval from the FSSA Privacy & Security Office.

R. Access to FSSA and/or State Information Systems.

(1) "FSSA and/or State Information Systems" means all computing hardware and related components, all computer software and related components, all network devices and related functions, and data owned by, licensed to, in the legal custody of, and/or operated by FSSA and/or the State.

(2) If the Contractor, in the performance of Contractor's services under this Contract, is authorized and granted by the State with access to FSSA and/or State Information Systems:

(A) Contractor agrees that it and all members of its workforce (as used here, "workforce" means employees, volunteers, interns, trainees, (sub)contractors, and other persons whose conduct is under the control of Contractor) performing such services will comply with all FSSA and State Privacy and Security Policies and Procedures.

(B) All members of Contractor's workforce who are or will be granted access to FSSA and/or State Information Systems will undertake and certify completion of all FSSA and State mandated privacy and security training following a schedule reasonably required by FSSA and the State (e.g., upon new hire/assignment and annually thereafter).

(C) All members of Contractor's workforce who are or will be granted access to FSSA and/or State Information systems will agree in writing or through electronic confirmation to the rules of behavior regarding access to and use of FSSA and/or State information systems; such rules of behavior include but are not limited to the State Information Resource Use Agreement ("IRUA").

(D) Such training and rules of behavior agreement will be coordinated with Contractor by the FSSA Privacy and Security Office and the Indiana Office of Technology ("IOT").

(E) Any members of Contractor's workforce who fail to complete the required training as described above within the scheduled timeframes or who fail to agree to the rules of behavior will not be permitted to access FSSA and/or State information systems.

(F) Access to and usage of FSSA and/or State Information Systems is controlled through role-based access privileges and follows the principle of least privilege, meaning users are granted access to/usage of only the minimum amount of

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information and system functions necessary to perform their role or job assignment. As such, FSSA or its designee will provide Contractor with a list of roles it deems necessary for Contractor to perform the services; Contractor will identify each individual workforce member who requires access to/usage of FSSA and/or State Information Systems and the role to be assigned to each individual. Contractor will certify in writing that the role assigned to each individual workforce member is necessary and appropriate for the individual to perform their job assignment with respect to the performance of Contractor's services under this Contract.

(G) FSSA will authorize and grant Contractor workforce member access privileges based on the requested and certified role in a timely manner; FSSA and IOT reserve the right to withdraw such authorization for any workforce member, with or without cause, at any time and without prior notice.

(H) Contractor agrees to notify the FSSA Privacy and Security Office or its designee within twenty-four (24) hours of any workforce member terminations or changes in workforce member assignment that would affect their need for access or role.

(I) Contractor agrees that it is solely responsible for the actions, including errors and omissions, intentional misconduct, or malfeasance of its workforce members with respect to their access to and usage of FSSA and/or State Information Systems.

(J) The FSSA Privacy and Security Office (or its designee) and Contractor will collaborate on the methods and means to identify workforce members requiring access, certification, changes, and other communications under this subsection.

S. 45 CFR §155.260 Compliance.

(1) The FSSA Division of Family Resources ("DFR") participates in a PII data exchange with the Centers for Medicare and Medicaid services ("CMS") mandated under the Affordable Care Act ("ACA", Public Law 111-148). The receipt of PII data from CMS through this data exchange ("ACA PII") is in support of the determination of eligibility for healthcare coverage for individuals, which is a primary function of DFR. DFR is designated as the Administering Entity under a computer matching agreement with CMS and, per the terms of that agreement, is obligated to comply with the provisions of 45 CFR §155.260 and §155.280 regarding the privacy and security of ACA PII and that such compliance will be achieved through the application of the privacy and security standards and obligations established in the Minimum Acceptable Risk Standards for Exchanges ("MARS-E") promulgated by CMS.

(2) 45 CFR §155.260(b)(2)(v) requires DFR to bind any downstream entities with which ACA PII is shared to same privacy and security standards and obligations that DFR is obligated to comply with, subject to the provisions under 45 CFR §155.260(b)(3) and in compliance with the monitoring provisions under 45 CFR §155.280.

(3) In this regard (pursuant to the immediately preceding):

(A) Contractor understands that in the performance of its services under this Contract Contractor will be given access to and usage of ACA PII to the extent necessary to perform such services; such access and usage of ACA PII is hereby authorized by the State.

(B) Contractor agrees that such ACA PII is subject to the same provisions of this Section as apply to PII and PHI, including but not limited to subsection H Improper Disclosure, Security Incident, and Breach Notification.

(C) Contractor further agrees that it will employ privacy and security standards over such ACA PII that are consistent with and being at least as protective as the privacy and security standards employed by DFR as described in paragraph 1) above taking into consideration: (i) the environment in which the Contractor is operating; (ii) whether specific standards are relevant and applicable to the Contractor's duties and activities in the performance of the services; and, (iii) existing legal requirements to which Contractor is bound in relation to its administrative, technical, and operational controls and practices, including but not

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limited to, its existing data handling and information technology processes and protocols.

(D) Contractor additionally agrees that the privacy and security standards it employs over ACA PII will be consistent with the principles established in 45 CFR §155.260(a)(3) and that Contractor will bind any subcontractors with authorized access to ACA PII to the same or at least as protective as the privacy and security standards Contractor employs over ACA PII.

(E) Contractor agrees that it will comply with the applicable provisions under 45 CFR §155.260 as a non-exchange entity.

T. Independent assessment.

If and to the extent that Contractor creates, receives, maintains, uses, and/or transmits PII, as authorized under this Contract, employing information systems owned by, licensed to, in the legal custody of, and/or operated by Contractor (excluding and separate from FSSA and/or State Information Systems), in order to assure Contractor's appropriate application of its privacy and security standards, Contractor will engage a qualified, independent third-party to assess Contractor's privacy and security standards and controls and have such assessment performed on an annual basis. Contractor is solely responsible for ensuring each such assessment is reasonable in scope and depth with respect to Contractor's environment. The State understands that the Contractor currently undergoes an annual SOC 2 Type ii audit that will satisfy this requirement. As such:

(1) Contractor agrees it will provide the State with a copy of the SOC 2 audit report ("audit report") within thirty (30) days of when the audit report is issued from the auditor to the Contractor. The State agrees that it will keep the contents of the audit report confidential and not disclose the details of the audit report to any third-party without prior written permission by the Contractor; provided however, the State may disclose the audit report to its own independent third-party security and privacy auditor under the condition that the State's auditor will not further disclose the contents of the audit report and use it solely for the purposes of conducting its privacy and security audit of the State or FSSA. Further, Contractor agrees that the State may provide copies of the audit report to certain federal agencies with which the State is under formal agreement to comply with certain federal privacy and security standards; these federal agencies include, but may not be limited to, the Internal Revenue Service, The Centers for Medicare and Medicaid Services, the Social Security Administration, and the Office of Child Support Enforcement.

(2) Should the audit report contain a qualified opinion, Contractor agrees to provide the State with its management response, including plan of action and timeline to correct the weaknesses identified, along with the copy of the audit report. The State expects that the Contractor will remediate the weaknesses identified within a reasonable time-period as defined in its management response. Failure to remediate critical/material weaknesses within the defined time periods will be considered a material breach of this Agreement by the Contractor.

(3) Should Contractor decide during the term of this Agreement to discontinue with undergoing a SOC 2 Type ii annual audit, Contractor will provide the State with ninety (90) days advance notice of Contractor's decision. Contractor understands that such discontinuance would constitute a material breach of this Agreement unless Contractor proposes a replacement privacy and security audit process that meets with the State's reasonable satisfaction (e.g. independent, qualified third-party assessment, provision of the assessment report to the State, agreement to resolve all identified weaknesses in a reasonable time-period, etc.).

(4) Contractor agrees that it shall be responsible for, including all costs with respect to, fulfilling Contractor's obligations under this Section.

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14. Continuity of Services.

A. The Contractor recognizes that the service(s) to be performed under this Contract are vital to the State and must be continued without interruption and that, upon Contract expiration, a successor, either the State or another contractor, may continue them. The Contractor agrees to:

1. Furnish phase-in training; and

2. Exercise its best efforts and cooperation to effect an orderly and efficient transition to a successor.

B. The Contractor shall, upon the State's written notice:

1. Furnish phase-in, phase-out services for up to sixty (60) days after this Contract expires; and

2. Negotiate in good faith a plan with a successor to determine the nature and extent of phase-in, phase-out services required. The plan shall specify a training program and a date for transferring responsibilities for each division of work described in the plan, and shall be subject to the State's approval. The Contractor shall provide sufficient experienced personnel during the phase-in, phase-out period to ensure that the services called for by this Contract are maintained at the required level of proficiency.

C. The Contractor shall allow as many personnel as practicable to remain on the job to help the successor maintain the continuity and consistency of the services required by this Contract. The Contractor also shall disclose necessary personnel records and allow the successor to conduct on-site interviews with these employees. If selected employees are agreeable to the change, the Contractor shall release them at a mutually agreeable date and negotiate transfer of their earned fringe benefits to the successor.

D. The Contractor shall be reimbursed for all reasonable phase-in, phase-out costs (i.e., costs incurred within the agreed period after contract expiration that result from phase-in, phase-out operations).

15. Debarment and Suspension.

A. The Contractor certifies by entering into this Contract that neither it nor its principals nor any of its subcontractors are presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from entering into this Contract by any federal agency or by any department, agency or political subdivision of the State of Indiana. The term "principal" for purposes of this Contract means an officer, director, owner, partner, key employee or other person with primary management or supervisory responsibilities, or a person who has a critical influence on or substantive control over the operations of the Contractor.

B. The Contractor certifies that it has verified the state and federal suspension and debarment status for all subcontractors receiving funds under this Contract and shall be solely responsible for any recoupment, penalties or costs that might arise from use of a suspended or debarred subcontractor. The Contractor shall immediately notify the State if any subcontractor becomes debarred or suspended, and shall, at the State's request, take all steps required by the State to terminate its contractual relationship with the subcontractor for work to be performed under this Contract.

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16. Default by State. If the State, sixty (60) days after receipt of written notice, fails to correct or cure any material breach of this Contract, the Contractor may cancel and terminate this Contract and institute measures to collect monies due up to and including the date of termination.

17. Disputes.

A. Should any disputes arise with respect to this Contract, the Contractor and the State agree to act immediately to resolve such disputes. Time is of the essence in the resolution of disputes.

B. The Contractor agrees that the existence of a dispute notwithstanding, it will continue without delay to carry out all of its responsibilities under this Contract that are not affected by the dispute. Should the Contractor fail to continue to perform its responsibilities regarding all non-disputed work, without delay, any additional costs incurred by the State or the Contractor as a result of such failure to proceed shall be borne by the Contractor, and the Contractor shall make no claim against the State for such costs.

C. If the parties are unable to resolve a contract dispute between them after good faith attempts to do so, a dissatisfied party shall submit the dispute to the Commissioner of the Indiana Department of Administration for resolution. The dissatisfied party shall give written notice to the Commissioner and the other party. The notice shall include (1) a description of the disputed issues, (2) the efforts made to resolve the dispute, and (3) a proposed resolution. The Commissioner shall promptly issue a Notice setting out documents and materials to be submitted to the Commissioner in order to resolve the dispute; the Notice may also afford the parties the opportunity to make presentations and enter into further negotiations. Within thirty (30) business days of the conclusion of the final presentations, the Commissioner shall issue a written decision and furnish it to both parties. The Commissioner's decision shall be the final and conclusive administrative decision unless either party serves on the Commissioner and the other party, within ten (10) business days after receipt of the Commissioner's decision, a written request for reconsideration and modification of the written decision. If the Commissioner does not modify the written decision within thirty (30) business days, either party may take such other action helpful to resolving the dispute, including submitting the dispute to an Indiana court of competent jurisdiction. If the parties accept the Commissioner's decision, it may be memorialized as a written Amendment to this Contract if appropriate.

D. The State may withhold payments on disputed items pending resolution of the dispute. The unintentional nonpayment by the State to the Contractor of one or more invoices not in dispute in accordance with the terms of this Contract will not be cause for the Contractor to terminate this Contract, and the Contractor may bring suit to collect these amounts without following the disputes procedure contained herein.

E. With the written approval of the Commissioner of the Indiana Department of Administration, the parties may agree to forego the process described in subdivision C. relating to submission of the dispute to the Commissioner.

F. This paragraph shall not be construed to abrogate provisions of IC § 4-6-2-11 in situations where dispute resolution efforts lead to a compromise of claims in favor of the State as described in that statute. In particular, releases or settlement agreements involving releases of legal claims or potential legal claims of the state should be processed consistent with IC § 4-6-2-11, which requires approval of the Governor and Attorney General.

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18. Drug-Free Workplace Certification. As required by Executive Order No. 90-5 dated April 12, 1990, issued by the Governor of Indiana, the Contractor hereby covenants and agrees to make a good faith effort to provide and maintain a drug-free workplace. The Contractor will give written notice to the State within ten (10) days after receiving actual notice that the Contractor, or an employee of the Contractor in the State of Indiana, has been convicted of a criminal drug violation occurring in the workplace. False certification or violation of this certification may result in sanctions including, but not limited to, suspension of contract payments, termination of this Contract and/or debarment of contracting opportunities with the State for up to three (3) years.

In addition to the provisions of the above paragraph, if the total amount set forth in this Contract is in excess of $25,000.00, the Contractor certifies and agrees that it will provide a drug-free workplace by:

A. Publishing and providing to all of its employees a statement notifying them that the unlawful manufacture, distribution, dispensing, possession or use of a controlled substance is prohibited in the Contractor's workplace, and specifying the actions that will be taken against employees for violations of such prohibition;

B. Establishing a drug-free awareness program to inform its employees of: (1) the dangers of drug abuse in the workplace; (2) the Contractor's policy of maintaining a drug-free workplace; (3) any available drug counseling, rehabilitation and employee assistance programs; and (4) the penalties that may be imposed upon an employee for drug abuse violations occurring in the workplace;

C. Notifying all employees in the statement required by subparagraph (A) above that as a condition of continued employment, the employee will (1) abide by the terms of the statement; and (2) notify the Contractor of any criminal drug statute conviction for a violation occurring in the workplace no later than five (5) days after such conviction;

D. Notifying the State in writing within ten (10) days after receiving notice from an employee under subdivision (C)(2) above, or otherwise receiving actual notice of such conviction;

E. Within thirty (30) days after receiving notice under subdivision (C)(2) above of a conviction, imposing the following sanctions or remedial measures on any employee who is convicted of drug abuse violations occurring in the workplace: (1) taking appropriate personnel action against the employee, up to and including termination; or (2) requiring such employee to satisfactorily participate in a drug abuse assistance or rehabilitation program approved for such purposes by a federal, state or local health, law enforcement, or other appropriate agency; and

F. Making a good faith effort to maintain a drug-free workplace through the implementation of subparagraphs (A) through (E) above.

19. Employment Eligibility Verification. As required by IC § 22-5-1.7, the Contractor swears or affirms under the penalties of perjury that the Contractor does not knowingly employ an unauthorized alien. The Contractor further agrees that:

A. The Contractor shall enroll in and verify the work eligibility status of all his/her/its newly hired employees through the E-Verify program as defined in IC § 22-5-1.7-3. The Contractor is not required to participate should the E-Verify program cease to exist. Additionally, the Contractor is not required to participate if the Contractor is self-employed and does not employ any employees.

B. The Contractor shall not knowingly employ or contract with an unauthorized alien. The Contractor shall not retain an employee or contract with a person that the Contractor subsequently learns is an unauthorized alien.

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C. The Contractor shall require his/her/its subcontractors, who perform work under this Contract, to certify to the Contractor that the subcontractor does not knowingly employ or contract with an unauthorized alien and that the subcontractor has enrolled and is participating in the E-Verify program. The Contractor agrees to maintain this certification throughout the duration of the term of a contract with a subcontractor.

The State may terminate for default if the Contractor fails to cure a breach of this provision no later than thirty (30) days after being notified by the State.

20. Employment Option. If the State determines that it would be in the State's best interest to hire an employee of the Contractor, the Contractor will release the selected employee from any non-competition agreements that may be in effect. This release will be at no cost to the State or the employee.

21. Force Majeure. In the event that either party is unable to perform any of its obligations under this Contract or to enjoy any of its benefits because of natural disaster or decrees of governmental bodies not the fault of the affected party (hereinafter referred to as a "Force Majeure Event"), the party who has been so affected shall immediately or as soon as is reasonably possible under the circumstances give notice to the other party and shall do everything possible to resume performance. Upon receipt of such notice, all obligations under this Contract shall be immediately suspended. If the period of nonperformance exceeds thirty (30) days from the receipt of notice of the Force Majeure Event, the party whose ability to perform has not been so affected may, by giving written notice, terminate this Contract.

22. Funding Cancellation. As required by Financial Management Circular 2007-1 and IC § 5-22-17-5, when the Director of the State Budget Agency makes a written determination that funds are not appropriated or otherwise available to support continuation of performance of this Contract, this Contract shall be canceled. A determination by the Director of State Budget Agency that funds are not appropriated or otherwise available to support continuation of performance shall be final and conclusive.

23. Governing Law. This Contract shall be governed, construed, and enforced in accordance with the laws of the State of Indiana, without regard to its conflict of laws rules. Suit, if any, must be brought in the State of Indiana.

24. HIPAA Compliance. Incorporated into Clause 13.

25. Indemnification. The Contractor agrees to indemnify, defend, and hold harmless the State, its agents, officials, and employees from all third-party claims and suits including court costs, attorney's fees, and other expenses caused by any act or omission of the Contractor and/or its subcontractors, if any, in the performance of this Contract. The State will not provide indemnification to the Contractor.

26. Independent Contractor; Workers' Compensation Insurance. The Contractor is performing as an independent entity under this Contract. No part of this Contract shall be construed to represent the creation of an employment, agency, partnership or joint venture agreement between the parties. Neither party will assume liability for any injury (including death) to any persons, or damage to any property, arising out of the acts or omissions of the agents, employees or subcontractors of the other party. The Contractor shall provide all necessary unemployment and workers' compensation insurance for the Contractor's

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employees, and Contractor shall provide the State with a Certificate of Insurance evidencing such coverage prior to starting work under this Contract.

27. **Indiana Veteran Owned Small Business Enterprise Compliance.** Award of this Contract was based, in part, on the Indiana Veteran Owned Small Business Enterprise ("IVOSB") participation plan, as detailed in the IVOSB Subcontractor Commitment Form, commonly referred to as "Attachment A-1" in the procurement documentation and incorporated by reference herein. Therefore, any changes to this information during the Contract term must be approved by IDOA's Division of Supplier Diversity and may require an amendment. It is the State's expectation that the Contractor will meet the subcontractor commitments during the Contract term. The following certified IVOSB subcontractor(s) will be participating in this Contract:

    IVOSB COMPANY NAME PHONE EMAIL OF CONTACT PERSON PERCENT:

    Not Applicable

    Briefly describe the IVOSB service(s)/product(s) to be provided under this Contract and include the estimated date(s) for utilization during the Contract term:

    A copy of each subcontractor agreement must be submitted to the Division of Supplier Diversity within thirty (30) days of the effective date of this Contract. The subcontractor agreements may be uploaded into Pay Audit (Indiana's subcontractor payment auditing system), emailed to IndianaVeteransPreference@idoa.IN.gov, or mailed to IDOA, 402 W. Washington Street, Room W-462, Indianapolis, IN 46204. Failure to provide a copy of any subcontractor agreement may be deemed a violation of the rules governing IVOSB procurement and may result in sanctions allowable under 25 IAC 9-5-2. Requests for changes must be submitted to IndianaVeteransPreference@idoa.IN.gov for review and approval before changing the participation plan submitted in connection with this Contract.

    The Contractor shall report payments made to certified IVOSB subcontractors under this Contract on a monthly basis using Pay Audit. The Contractor shall notify subcontractors that they must confirm payments received from Contractor in Pay Audit. The Pay Audit system can be accessed on the IDOA webpage at: www.in.gov/idoa/mwbe/payaudit.htm. The Contractor may also be required to report IVOSB certified subcontractor payments directly to the Division of Supplier Diversity, as reasonably requested and in the format required by the Division of Supplier Diversity.

    The Contractor's failure to comply with the provisions in this clause may be considered a material breach of the Contract.

28. **Information Technology Enterprise Architecture Requirements.** If this Contract involves information technology-related products or services, the Contractor agrees that all such products or services are compatible with any of the technology standards found at https://www.in.gov/iot/2394.htm that are applicable, including the assistive technology standard. The State may terminate this Contract for default if the terms of this paragraph are breached.

29. **Insurance.**

    A. The Contractor and its subcontractors (if any) shall secure and keep in force during the term of this Contract the following insurance coverages (if applicable) covering the Contractor for any and all claims of any nature which may in any manner arise out of or result from Contractor's performance under this Contract:

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1. Commercial general liability, including contractual coverage, and products or completed operations coverage (if applicable), with minimum liability limits not less than $700,000 per person and $5,000,000 per occurrence unless additional coverage is required by the State. The State is to be named as an additional insured on a primary, non-contributory basis for any liability arising directly or indirectly under or in connection with this Contract.
2. Automobile liability for owned, non-owned and hired autos with minimum liability limits not less than $700,000 per person and $5,000,000 per occurrence. The State is to be named as an additional insured on a primary, non-contributory basis.
3. Errors and Omissions liability with minimum liability limits of $1,000,000 per claim and in the aggregate. Coverage for the benefit of the State shall continue for a period of two (2) years after the date of service provided under this Contract.
4. Fiduciary liability if the Contractor is responsible for the management and oversight of various employee benefit plans and programs such as pensions, profit-sharing and savings, among others with limits no less than $700,000 per cause of action and $5,000,000 in the aggregate.
5. Valuable Papers coverage, if applicable, with an Inland Marine Policy Insurance with limits sufficient to pay for the re-creation and reconstruction of such records.
6. Surety or Fidelity Bond(s) if required by statute or by the agency.
7. Cyber Liability addressing risks associated with electronic transmissions, the internet, networks and informational assets, and having limits of no less than $700,000 per occurrence and $5,000,000 in the aggregate.

The Contractor shall provide proof of such insurance coverage by tendering to the undersigned State representative a certificate of insurance prior to the commencement of this Contract and proof of workers' compensation coverage meeting all statutory requirements of IC §22-3-2. In addition, proof of an "all states endorsement" covering claims occurring outside the State is required if any of the services provided under this Contract involve work outside of Indiana.

B. The Contractor's insurance coverage must meet the following additional requirements:

1. The insurer must have a certificate of authority or other appropriate authorization to operate in the state in which the policy was issued.
2. Any deductible or self-insured retention amount or other similar obligation under the insurance policies shall be the sole obligation of the Contractor.
3. The State will be defended, indemnified and held harmless to the full extent of any coverage actually secured by the Contractor in excess of the minimum requirements set forth above. The duty to indemnify the State under this Contract shall not be limited by the insurance required in this Contract.
4. The Contractor shall endeavor to provide 30 days written notice in advance of any changes to insurance policies required, but in no event shall provide written notice less than 14 days prior to changes in insurance policies.

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5. The Contractor waives and agrees to require their insurer to waive their rights of subrogation against the State of Indiana.

C. Failure to provide insurance as required in this Contract may be deemed a material breach of contract entitling the State to immediately terminate this Contract. The Contractor shall furnish a certificate of insurance and all endorsements to the State before the commencement of this Contract.

30. Key Person(s).

A. If both parties have designated that certain individual(s) are essential to the services offered, the parties agree that should such individual(s) leave their employment during the term of this Contract for whatever reason, the State shall have the right to terminate this Contract upon thirty (30) days' prior written notice.

B. In the event that the Contractor is an individual, that individual shall be considered a key person and, as such, essential to this Contract. Substitution of another for the Contractor shall not be permitted without express written consent of the State.

Nothing in sections A and B, above shall be construed to prevent the Contractor from using the services of others to perform tasks ancillary to those tasks which directly require the expertise of the key person. Examples of such ancillary tasks include secretarial, clerical, and common labor duties. The Contractor shall, at all times, remain responsible for the performance of all necessary tasks, whether performed by a key person or others.

Key person(s) to this Contract is/are Not Applicable

31. Licensing Standards. The Contractor, its employees and subcontractors shall comply with all applicable licensing standards, certification standards, accrediting standards and any other laws, rules, or regulations governing services to be provided by the Contractor pursuant to this Contract. The State will not pay the Contractor for any services performed when the Contractor, its employees or subcontractors are not in compliance with such applicable standards, laws, rules, or regulations. If any license, certification or accreditation expires or is revoked, or any disciplinary action is taken against an applicable license, certification, or accreditation, the Contractor shall notify the State immediately and the State, at its option, may immediately terminate this Contract.

32. Merger & Modification. This Contract constitutes the entire agreement between the parties. No understandings, agreements, or representations, oral or written, not specified within this Contract will be valid provisions of this Contract. This Contract may not be modified, supplemented, or amended, except by written agreement signed by all necessary parties.

33. Minority and Women's Business Enterprises Compliance.

Award of this Contract was based, in part, on the Minority and/or Women's Business Enterprise ("MBE" and/or "WBE") participation plan as detailed in the Minority and Women's Business Enterprises Subcontractor Commitment Form, commonly referred to as "Attachment A" in the procurement documentation and incorporated by reference herein. Therefore, any changes to this information during the Contract term must be approved by Division of Supplier Diversity and may require an amendment. It is the State's expectation that the Contractor will meet the subcontractor commitments during the Contract term.

The following Division of Supplier Diversity certified MBE and/or WBE subcontractors will be participating in this Contract:

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MBE or WBE COMPANY NAME PHONE EMAIL OF CONTACT PERSON PERCENT:

Not applicable

Briefly describe the MBE and/or WBE service(s)/product(s) to be provided under this Contract and include the estimated date(s) for utilization during the Contract term:

A copy of each subcontractor agreement must be submitted to the Division of Supplier Diversity within thirty (30) days of the effective date of this Contract. The subcontractor agreements may be uploaded into Pay Audit (Indiana's subcontractor payment auditing system), emailed to MWBECompliance@idoa.IN.gov, or mailed to Division of Supplier Diversity, 402 W. Washington Street, Room W-462, Indianapolis IN 46204. Failure to provide a copy of any subcontractor agreement may be deemed a violation of the rules governing MBE/WBE procurement and may result in sanctions allowable under 25 IAC 5-7-8. Requests for changes must be submitted to MWBECompliance@idoa.IN.gov for review and approval before changing the participation plan submitted in connection with this Contract.

The Contractor shall report payments made to Division of Supplier Diversity certified subcontractors under this Contract on a monthly basis using Pay Audit. The Contractor shall notify subcontractors that they must confirm payments received from Contractor in Pay Audit. The Pay Audit system can be accessed on the IDOA webpage at: www.in.gov/idoa/mwbe/payaudit.htm. The Contractor may also be required to report Division of Supplier Diversity certified subcontractor payments directly to the Division, as reasonably requested and in the format required by the Division of Supplier Diversity.

The Contractor's failure to comply with the provisions in this clause may be considered a material breach of this Contract.

34. Nondiscrimination. Pursuant to the Indiana Civil Rights Law, specifically IC § 22-9-1-10, and in keeping with the purposes of the federal Civil Rights Act of 1964, the Age Discrimination in Employment Act, and the Americans with Disabilities Act, the Contractor covenants that it shall not discriminate against any employee or applicant for employment relating to this Contract with respect to the hire, tenure, terms, conditions or privileges of employment or any matter directly or indirectly related to employment, because of the employee's or applicant's race, color, national origin, religion, sex, age, disability, ancestry, status as a veteran, or any other characteristic protected by federal, state, or local law ("Protected Characteristics"). Contractor certifies compliance with applicable federal laws, regulations, and executive orders prohibiting discrimination based on the Protected Characteristics in the provision of services. Breach of this paragraph may be regarded as a material breach of this Contract, but nothing in this paragraph shall be construed to imply or establish an employment relationship between the State and any applicant or employee of the Contractor or any subcontractor.

The State is a recipient of federal funds, and therefore, where applicable, Contractor and any subcontractors shall comply with requisite affirmative action requirements, including reporting, pursuant to 41 CFR Chapter 60, as amended, and Section 202 of Executive Order 11246 as amended by Executive Order 13672.

35. Notice to Parties. Whenever any notice, statement or other communication is required under this Contract, it will be sent by E-mail or first-class U.S. mail service to the following addresses, unless otherwise specifically advised.

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A. Notices to the State shall be sent to:

Adrienne Shields, Director
Division of Family Resources
402 West Washington Street, Room W392
Indianapolis, IN 46204
Email: Adrienne.Shields@fssa.in.gov

B. Notices to the Contractor shall be sent to:

Sharie Kirsch
610 Opperman Drive
Eagan, MN 55123
E-mail: Sharie.Kirsch@thomsonreuters.com

As required by IC §4-13-2-14.8, payments to the Contractor shall be made via electronic funds transfer in accordance with instructions filed by the Contractor with the Indiana Auditor of State.

36. Order of Precedence; Incorporation by Reference. Any inconsistency or ambiguity in this Contract shall be resolved by giving precedence in the following order: (1) this Addendum, (2) the State's cloud terms, (3) the Form Contract, (4) other attachments prepared by the State, and (5) attachments prepared by the Contractor. All attachments, and all documents referred to in this paragraph, are hereby incorporated fully by reference. If there is any conflict between this Addendum and the attachments, the terms of the Addendum control.

37. Ownership of Documents and Materials.

A. All documents, records, programs, applications, data, algorithms, film, tape, articles, memoranda, and other materials (the "Materials") not developed or licensed by the Contractor prior to execution of this Contract, but specifically developed under this Contract shall be considered "work for hire" and the Contractor hereby transfers and assigns any ownership claims to the State so that all Materials will be the property of the State. If ownership interest in the Materials cannot be assigned to the State, the Contractor grants the State a non-exclusive, non-cancelable, perpetual, worldwide royalty-free license to use the Materials and to use, modify, copy and create derivative works of the Materials.

B. Use of the Materials, other than related to contract performance by the Contractor, without the prior written consent of the State, is prohibited. During the performance of this Contract, the Contractor shall be responsible for any loss of or damage to the Materials developed for or supplied by the State and used to develop or assist in the services provided while the Materials are in the possession of the Contractor. Any loss or damage thereto shall be restored at the Contractor's expense. The Contractor shall provide the State full, immediate, and unrestricted access to the Materials and to Contractor's work product during the term of this Contract.

C. Notwithstanding any other provision, Contractor will retain exclusive ownership of all hardware and software tools (including any refreshes, enhancements and/or upgrades thereof) used in the provisioning of services (collectively “Contractor Tools”). The State shall have no residual rights to Contractor tools beyond the term of the Contract.

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38. Payments.

A. All payments shall be made 35 days in arrears in conformance with State fiscal policies and procedures and, as required by IC §4-13-2-14.8, the direct deposit by electronic funds transfer to the financial institution designated by the Contractor in writing unless a specific waiver has been obtained from the Indiana Auditor of State. No payments will be made in advance of receipt of the goods or services that are the subject of this Contract except as permitted by IC §4-13-2-20.

B. Claims shall be submitted for reimbursement in accordance with the specified Component Descriptions and Unit Descriptions defined on the State-generated FSSA Contract Claim Reimbursement Form. Costs are incurred on the date goods, services, and/or deliverables are satisfactorily provided in full and/or **after** a reimbursable expense has been paid. Reimbursement shall be based on actual goods, services and/or deliverables provided and/or actual reimbursable expenses previously paid. Claims shall be submitted to the State within sixty (60) calendar days following the end of the month in which goods, services or deliverable were provided and/or expenses were paid. The State has the discretion, and reserves the right, to **not pay** any claims submitted later than sixty (60) calendar days after a specific Contract Claim Reimbursement Form Item Description expiration date or termination of this agreement. Payment for claims submitted after that time may, at the discretion of the State, be denied.

C. At the time that the final claim is submitted, all reconciliation issues must be resolved including the return of any incorrectly reimbursed monies or credits received for expenses previously reimbursed. Incorrectly reimbursed funds or credits received for expenses reimbursed will be returned immediately upon discovery as a direct payment, not credit, to the "State of Indiana." Each return of funds will be accompanied with a completed FSSA Contract Claim Reimbursement Form identifying specific Components to be credited (negative) and each associated month reported on the original reimbursement request. Payments and FSSA Contract Claim Reimbursement Forms will be submitted to FSSA Administrative Services using the address provided on the reimbursement form.

D. Claims must be submitted with accompanying supportive documentation, as designated by the State. Incomplete claims submitted or claims submitted without supportive documentation will be returned to the Contractor and/or Grantee and not processed for payment. Failure to successfully perform or execute the policies and/or provisions made in this contract may result in the denial and/or partial payment of claims submitted for reimbursement.

39. Penalties/Interest/Attorney's Fees. The State will in good faith perform its required obligations hereunder and does not agree to pay any penalties, liquidated damages, interest or attorney's fees, except as permitted by Indiana law, in part, IC § 5-17-5, IC § 34-54-8, IC § 34-13-1 and IC § 34-52-2-3.

Notwithstanding the provisions contained in IC § 5-17-5, any liability resulting from the State's failure to make prompt payment shall be based solely on the amount of funding originating from the State and shall not be based on funding from federal or other sources.

40. Progress Reports. The Contractor shall submit progress reports to the State upon request. The report shall be oral, unless the State, upon receipt of the oral report, should deem it necessary to have it in written form. The progress reports shall serve the purpose of assuring the State that work is progressing in line with the schedule, and that completion can be reasonably assured on the scheduled date.

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41. **Public Record.** The Contractor acknowledges that the State will not treat this Contract as containing confidential information, and the State will post this Contract on the transparency portal as required by Executive Order 05-07 and IC § 5-14-3.5-2. Use by the public of the information contained in this Contract shall not be considered an act of the State.

42. **Renewal Option.** This Contract may be renewed under the same terms and conditions, subject to the approval of the Commissioner of the Department of Administration and the State Budget Director in compliance with IC § 5-22-17-4. The term of the renewed contract may not be longer than the term of the original contract.

43. **Severability.** The invalidity of any section, subsection, clause or provision of this Contract shall not affect the validity of the remaining sections, subsections, clauses or provisions of this Contract.

44. **Substantial Performance.** This Contract shall be deemed to be substantially performed only when fully performed according to its terms and conditions and any written amendments or supplements.

45. **Taxes.** The State is exempt from most state and local taxes and many federal taxes. The State will not be responsible for any taxes levied on the Contractor as a result of this Contract.

46. **Termination for Convenience.** This Contract may be terminated, in whole or in part, by the State, which shall include and is not limited to the Indiana Department of Administration (IDOA) and the State Budget Agency whenever, for any reason, the State determines that such termination is in its best interest. Termination of services shall be effected by delivery to the Contractor of a Termination Notice at least thirty (30) days prior to the termination effective date, specifying the extent to which performance of services under such termination becomes effective. The Contractor shall be compensated for services properly rendered prior to the effective date of termination. The State will not be liable for services performed after the effective date of termination. The Contractor shall be compensated for services herein provided but in no case shall total payment made to the Contractor exceed the original contract price or shall any price increase be allowed on individual line items if canceled only in part prior to the original termination date. For the purposes of this paragraph, the parties stipulate and agree that IDOA shall be deemed to be a party to this Contract with authority to terminate the same for convenience when such termination is determined by the Commissioner of IDOA to be in the best interests of the State.

47. **Termination for Default**

    A. With the provision of thirty (30) days' notice to the Contractor, the State may terminate this Contract in whole or in part if the Contractor fails to:

        1. Correct or cure any breach of this Contract; the time to correct or cure the breach may be extended beyond thirty (30) days if the State determines progress is being made and the extension is agreed to by the parties;

        2. Deliver the supplies or perform the services within the time specified in this Contract or any extension;

        3. Make progress so as to endanger performance of this Contract; or

        4. Perform any of the other provisions of this Contract.

    B. If the State terminates this Contract in whole or in part, it may acquire, under the terms and in the manner the State considers appropriate, supplies or services

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similar to those terminated, and the Contractor will be liable to the State for any excess costs for those supplies or services. However, the Contractor shall continue the work not terminated.

C. The State shall pay the contract price for completed supplies delivered and services accepted. The Contractor and the State shall agree on the amount of payment for manufacturing materials delivered and accepted and for the protection and preservation of the property. Failure to agree will be a dispute under the Disputes clause. The State may withhold from these amounts any sum the State determines to be necessary to protect the State against loss because of outstanding liens or claims of former lien holders.

D. The rights and remedies of the State in this clause are in addition to any other rights and remedies provided by law or equity or under this Contract.

48. Travel. No expenses for travel will be reimbursed unless specifically authorized by this Contract. Permitted expenses will be reimbursed at the rate paid by the State and in accordance with the Budget Agency's Financial Management Circular -- Travel Policies and Procedures in effect at the time the expenditure is made. Out-of-state travel requests must be reviewed by the State for availability of funds and for conformance with Circular guidelines.

49. Waiver of Rights. No right conferred on either party under this Contract shall be deemed waived, and no breach of this Contract excused, unless such waiver is in writing and signed by the party claimed to have waived such right. Neither the State's review, approval or acceptance of, nor payment for, the services required under this Contract shall be construed to operate as a waiver of any rights under this Contract or of any cause of action arising out of the performance of this Contract, and the Contractor shall be and remain liable to the State in accordance with applicable law for all damages to the State caused by the Contractor's negligent performance of any of the services furnished under this Contract.

50. Work Standards. The Contractor shall execute its responsibilities by following and applying at all times the highest professional and technical guidelines and standards. If the State becomes dissatisfied with the work product of or the working relationship with those individuals assigned to work on this Contract, the State may request in writing the replacement of any or all such individuals, and the Contractor shall grant such request.

51. State Boilerplate Affirmation Clause. I swear or affirm under the penalties of perjury that I have not altered, modified, changed or deleted the State's standard contract clauses (as contained in the 2021 OAG/ IDOA Professional Services Contract Manual or the 2021 SCM Template) in any way except as follows:

13. Confidentiality of State Information. Modified.

24. **HIPAA Compliance.** Incorporated into Clause 13.

29. **Insurance.** Modified.

36. **Order of Precedence. Incorporation by Reference.** Modified.

37. **Ownership of Documents and Materials.** Modified.

38. **Payments.** Modified.

52. FNS Required Federal Provisions.

The contractor must comply with the following provisions:

1. Executive Order 11246, entitled “Equal Employment Opportunity,” as amended by Executive Order 11375, and as supplemented by the Department of Labor

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Regulations (41 CFR Part 60): The Executive Order prohibits federal contractors and federally assisted construction contractors and subcontractors who do over $10,000 in Government business in one year from discriminating in employment decisions on the basis of race, color, religion, sex, or national origin. The Executive Order also requires Government contractors to take affirmative action to ensure that equal opportunity is provided in all aspects of their employment.

Contractor will compile data, maintain records, and submit reports as required to permit effective enforcement of nondiscrimination laws, regulations, policies, instructions, and guidelines. This agreement permits authorized USDA personnel to review such records, books, and accounts as needed during hours of program operation to ascertain compliance.

2. The Clean Air Act, Section 306:

a. No Federal agency may enter into any contract with any person who is convicted of any offense under section 113(c) for the procurement of goods, materials, and services to perform such contract at any facility at which the violation which gave rise to such conviction occurred if such facility is owned, leased, or supervised by such person. The prohibition in the preceding sentence shall continue until the Administrator certifies that the condition giving rise to such a conviction has been corrected. For convictions arising under section 113(c)(2), the condition giving rise to the conviction also shall be considered to include any substantive violation of this Act associated with the violation of 113(c)(2). The Administrator may extend this prohibition to other facilities owned or operated by the convicted person.

b. The Administrator shall establish procedures to provide all Federal agencies with the notification necessary for the purposes of subsection (a).

c. In order to implement the purposes and policy of this Act to protect and enhance the quality of the Nation's air, the President shall, not more than 180 days after enactment of the Clean Air Amendments of 1970 cause to be issued an order (1) requiring each Federal agency authorized to enter into contracts and each Federal agency which is empowered to extend Federal assistance by way of grant, loan, or contract to effectuate the purpose and policy of this Act in such contracting or assistance activities, and (2) setting forth procedures, sanctions, penalties, and such other provisions, as the President determines necessary to carry out such requirement.

d. The President may exempt any contract, loan, or grant from all or part of the provisions of this section where he determines such exemption is necessary in the paramount interest of the United States and he shall notify the Congress of such exemption.

e. The President shall annually report to the Congress on measures taken toward implementing the purpose and intent of this section, including but not limited to the progress and problems associated with implementation of this section. [42 U.S.C. 7606]

3. The Clean Water Act:

a. No Federal agency may enter into any contract with any person who has been convicted of any offense under Section 309(c) of this Act for the procurement of goods, materials, and services if such contract is to be performed at any facility at which the violation which gave rise to such conviction occurred, and if such facility is owned, leased, or supervised by such person. The prohibition in preceding sentence shall continue until the Administrator certifies that the condition giving rise to such conviction has been corrected.

b. The Administrator shall establish procedures to provide all Federal agencies with the notification necessary for the purposes of subsection (a) of this section.

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c. In order to implement the purposes and policy of this Act to protect and enhance the quality of the Nation's water, the President shall, not more than 180 days after the enactment of this Act, cause to be issued an order:

(1) requiring each Federal agency authorized to enter into contracts and each Federal agency which is empowered to extend Federal assistance by way of grant, loan, or contract to effectuate the purpose and policy of this Act in such contracting or assistance activities, and

(2) setting forth procedures, sanctions, penalties, and such other provisions, as the President determines necessary to carry out such requirement.

d. The President may exempt any contract, loan, or grant from all or part of the provisions of this section where he determines such exemption is necessary in the paramount interest of the United States and he shall notify the Congress of such exemption.

e. The President shall annually report to the Congress on measures taken in compliance with the purpose and intent of this section, including, but not limited to, the progress and problems associated with such compliance.

f. (1) No certification by a contractor, and no contract clause, may be required in the case of a contract for the acquisition of commercial items in order to implement a prohibition or requirement of this section or a prohibition or requirement issued in the implementation of this section.

(2) In paragraph (1), the term "commercial item" has the meaning given such term in section 4(12) of the Office of Federal Procurement Policy Act (41 U.S.C. 403(12)).

4. The Anti-Lobbying Act: This Act prohibits the recipients of federal contracts, grants, and loans from using appropriated funds for lobbying the Executive or Legislative Branches of the federal government in connection with a specific contract, grant, or loan. As required by Section 1352, Title 31 of the U.S. Code and implemented at 34 CFR Part 82 for persons entering into a grant or cooperative agreement over $100,000, as defined at 34 CFR Part 82, Section 82.105 and 82.110, the applicant certifies that:

a. No federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any agency, a member of Congress, an officer or employee of Congress, or an employee of a member of Congress in connection with the making of any federal grant, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any federal grant or cooperative agreement;

b. If any funds other than federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a member of Congress, an officer or employee of Congress, or an employee of a member of Confess in connection with this federal grantor or cooperative agreement, the undersigned shall complete and submit Standard Form – LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions;

c. The undersigned shall require that the language of this certification be included in the award documents for all sub-awards at all tiers (including sub-grants, contracts under grants and cooperative agreements, and subcontracts) and that all sub-recipients shall certify and disclose accordingly.

5. Americans with Disabilities Act: This Act (28 CFR Part 35, Title II, Subtitle A) prohibits discrimination on the basis of disability in all services, programs, and activities provided to the public by State and local governments, except public transportation services.

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6. Drug Free Workplace Statement: The Federal government implemented the Drug Free Workplace Act of 1988 in an attempt to address the problems of drug abuse on the job. It is a fact that employees who use drugs have less productivity, a lower quality of work, a higher absenteeism, and are more likely to misappropriate funds or services. From this perspective, the drug abuser may endanger other employees, the public at large, or themselves. Damage to property, whether owned by this entity or not, could result from drug abuse on the job. All these actions might undermine public confidence in the services this entity provides. Therefore, in order to remain a responsible source for government contracts, the following guidelines have been adopted:

   a. The unlawful manufacture, distribution, dispensation, possession or use of a controlled substance is prohibited in the workplace.
   b. Violators may be terminated or requested to seek counseling from an approved rehabilitation service.
   c. Employees must notify their employer of any conviction of a criminal drug statute no later than five days after such conviction.
   d. Although alcohol is not a controlled substance, it is nonetheless a drug. It is the policy of the Indiana Family and Social Services Administration that abuse of this drug will also not be tolerated in the workplace.
   e. Contractors of federal agencies are required to certify that they will provide drug-free workplaces for their employees.

7. Debarment, suspension, and other responsibility matters: As required by Executive Order 12549, Debarment and Suspension, and implemented at 34 CFR Part 85, for prospective participants in primary covered transactions, as defined at 34 CFR Part 85, Sections 85.105 and 85.110.

   a. The applicant certifies that it and its principals:
      (1) Are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by any federal department or agency;

      (2) Have not within a three-year period preceding this application been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (federal, state, or local) transaction or contract under a public transaction; violation of federal or state antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;

      (3) Are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (federal, state, or local) with commission of any of the offenses enumerated in paragraph (1)(b) of this certification; and

      (4) Have not within a three-year period preceding this application had one or more public transactions (federal, state, or local) terminated for cause or default.

   b. Where the applicant is unable to certify to any of the statements in this certification, he or she shall attach an explanation to this application.

8. The federal government reserves a royalty-free, non-exclusive, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal government purposes, the copyright in any work developed under a grant, sub-grant, or contract under a grant or sub-grant or any rights of copyright to which a contractor purchases ownership.

Non-Collusion and Acceptance

The undersigned attests, subject to the penalties for perjury, that the undersigned is the Contractor, or that the undersigned is the properly authorized representative, agent, member or officer of the Contractor. Further, to the undersigned's knowledge, neither the undersigned nor any other member, employee, representative, agent or officer of the Contractor, directly or indirectly, has entered into or been offered any sum of money or other consideration for the execution of this Contract other than that which appears upon the face hereof**. Furthermore, if the undersigned has knowledge that a state officer, employee, or special state appointee, as those terms are defined in IC § 4-2-6-1, has a financial interest in the Contract, the Contractor attests to compliance with the disclosure requirements in IC § 4-2-6-10.5.**

Agreement to Use Electronic Signatures

I agree, and it is my intent, to sign this Contract by accessing State of Indiana Supplier Portal using the secure password assigned to me and by electronically submitting this Contract to the State of Indiana. I understand that my signing and submitting this Contract in this fashion is the legal equivalent of having placed my handwritten signature on the submitted Contract and this affirmation. I understand and agree that by electronically signing and submitting this Contract in this fashion I am affirming to the truth of the information contained therein. I understand that this Contract will not become binding on the State until it has been approved by the Department of Administration, the State Budget Agency, and the Office of the Attorney General, which approvals will be posted on the Active Contracts Database:
https://fs.gmis.in.gov/psp/guest/SUPPLIER/ERP/c/SOI_CUSTOM_APPS.SOI_PUBLIC_CNTRCTS.GBL

In Witness Whereof, the Contractor and the State have, through their duly authorized representatives, entered into this Contract. The parties, having read and understood the foregoing terms of this Contract, do by their respective signatures dated below agree to the terms thereof.

WEST PUBLISHING, A
THOMSON REUTERS BUSINESS

By: DocuSigned by: Nancy Leonard F18723AF46AE4BD...

Title: Sr. Commercial Consultant

Date: 1/24/2022 | 09:56 CST

Indiana Family and Social Services
Administration, Division of Family Resources

By: DocuSigned by: Adrienne M. Shields-500 3DB6A6C700F24E2...

Title: Director

Date: 1/24/2022 | 13:26 EST

Electronically Approved by: Indiana Office of Technology By: (for) Tracy Barnes, Chief Information Officer	Electronically Approved by: Department of Administration By: (for) Rebecca Holw erda, Commissioner
Electronically Approved by: State Budget Agency By: (for) Zachary Q. Jackson, Director	Electronically Approved as to Form and Legality: Office of the Attorney General By: (for) Theodore E. Rokita, Attorney General

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FORM CONTRACT
WEST PUBLISHING CORPORATION
STATEMENT OF WORK (SOW)

West Publishing Corporation, a Thomson Reuters business (WPC) will deliver to the Indiana Family Social Services Administration (FSSA) its fraud analytics (FraudCaster®) and case management (CaseTracker™) solutions (CaseTracker and FraudCaster, collectively, the "System") together with related implementation services, all as more particularly described in this SOW.

1. SCOPE OF SERVICES

A. **FraudCaster.** WPC will deliver FraudCaster as a Software-as-a-Service subscription deployed in Microsoft's Azure environment for an unlimited number of users. The FraudCaster functionality and applicable quantities or limitations will be delivered as follows:

Functionality	Description	Quantity
Recipient Profile	WPC will run current recipients through FraudCaster to identify areas of risk such as shared values (such as home address, e-mail address), deceased participants, excessive balance inquiries or multiple EBT replacement cards, behavioral pattern matching, and other anomalies. Results will trigger alerts that will appear in the recipient profiles.	Up to 750,000 households
Retailer Profile	WPC will run existing retailers through FraudCaster to identify areas of risk such as unusual recipient travel and purchasing patterns. This aids in the identification of clusters of potential trafficking recipients. Results will trigger alerts that will appear in the retailer profiles.	Up to 5,500 retailers
Detection Alerts / Reports	WPC will configure and deploy alerts to check for customer-defined anomalies. Results will trigger alerts/reports on the Dashboard, which also appear on recipient and retailer Profiles. Some model results are best displayed as reports; these are determined during the WPC Requirements and Onboarding Process (PROP) sessions.	Up to 20 alerts
Geospatial Analysis	WPC will geocode recipient and retailer data for use in geospatial analysis to analyze relationships across participants. Geospatial maps are configured from selected alerts.	Up to 3 maps
Street View	FraudCaster will provide street-level mapping to view recipient and retailer locations from within the dashboard.	All recipients and retailers
Data Matching	FraudCaster matches FSSA's program data against multiple external data sources including SSA Death Master File (DMF), Commercial Mail Receiving Agency (CMRA), suspicious email repository, and IP address resolution. It also matches against data provided by the FSSA such as PARIS data and a list of suspended or banned retailers and/or recipients.	All recipients and retailers
SuperSearch	WPC's powerful search tool facilitates exploration across the FraudCaster database.	All FraudCaster users
Thomson Reuters Advanced Investigations CLEAR licenses	Thomson Reuters CLEAR® database pulls from over 60 data sources, providing access to billions of records for analytics and reporting. A limited number of Super Users will be able to search across the ID FraudCaster database and public records/social media data access via Thomson Reuters CLEAR. Data sources include individual identity and business records, affiliates, linkages, best known address, criminal backgrounds, and information on social media.	Up to 2 Super User licenses

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Functionality	Description	Quantity
Scorecard	The FraudCaster Recipient Household Scorecard provides users with ready access to current recipients and their associated risk score. It is available to all ID FraudCaster users (no limit).	1 Recipient Household Scorecard
Additional State Data Sources	WPC will interface with up to five (5) State data sources, e.g., Vital Statistics, PARIS, or state incarceration records.	Up to five (5) State data sources

B. **CaseTracker.** WPC will deliver the following CaseTracker components as a Software-as-a-Service subscription deployed in Microsoft's Azure environment for up to 90 users in the quantities set forth below for new case creation.

Functionality	Description	Quantity
Intake Form	The intake form is used to create new cases in CaseTracker; provides a manual alternative to the integrated case creation functionality in FraudCaster.	1 form
Workflow	Workflow rules are used to optimize the business process by applying logic that triggers a change in the status of a case.	Up to 4 workflow rules
Case Record Profile	The Case Record Profile displays all the case tracking and management details and includes a Case Details tab with the information captured on the intake form. It can include up to 150 other fields that may be completed during the case lifecycle (closure reason, recommended outcome, etc.)	No limit
Case Activity	▪ Record Notes ▪ Record To-Do's with reminders ▪ Assign To-Do's to a CaseTracker user other than case owner ▪ Configurable automatic Case Activity notifications.	Up to 6 automatic notifications
Case Entities/ Subject(s) of a Case	Ability to accommodate multiple "Entity Types" for a single case (e.g., customer, subject, witness, etc.); each case entity form allows up to 50 possible data fields	Up to 3 entity types
Case Files	Attach any sort of electronic document to the case (e.g., fax, scanned document, MS Word, etc.) with a maximum individual attachment size of 200 MB.	No limit
General Case Features	Ability to assign a case by selecting an owner from the pick list and the ability to print the case file. There is also case history that will display an audit trail of changes made to the case record.	No limit
Case Record -- Forms	Forms can be deployed within the case file to document information that must be recorded more than once during the case lifecycle. For example: An interview form could be deployed to record every interview conducted.	Up to 7
Templates	System-generated documents (pdfs or Word files) that contain case data and can be displayed or produced during a workflow or based on business logic. For example, case information can be included in a repayment demand letter or a request for specific follow-up.	Up to 10
Maintenance	WPC provides the following maintenance functions: ▪ Add, modify or delete users, select their access level and notify them by email of their username and password ▪ Add, modify or delete category items (issues, products, etc.) ▪ Add, modify or delete workflow rules (for example: users may change timing of notifications)	No limit

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Functionality	Description	Quantity
	▪ Add, modify or delete email standard responses	
Access Controls	Access controls restrict functions and data available to groups of users. For example, information may be restricted based on the FSSA policies, so the user only sees cases and report information related to FSSA. Other access control examples include restrictions by case type, location, severity, etc.	5
DouPre-Configured Reports	The standard reporting package includes pre-configured reports that display aggregate data in a dashboard and time series reporting. Reports will be based on the FSSA's requirements. For example, audit or investigation outcomes, progress of prosecution referrals and hearings, and performance metrics to monitor the efficiency of effectiveness of program integrity efforts. A report specifically to support the data required on the 366B form also is available.	Up to 5 customizable reports
Ad-Hoc Reporting	The system includes an integrated ad-hoc reporting tool populated with reportable field values. WPC will provide report creation training for four (4) designated people.	Up to 4 ad-hoc reporting users
Automated steps	Built in processes to allow users to configure specific functions including transferring a complaint to a case, assigning cases, and setting notifications for updates related to records submissions, reporting dates, and populating fields, dependencies, and forms.	Up to 8 business rules
Search options on Advanced Search and Case View	Ability to search within CaseTracker to identify potentially related cases or recipients or retailers. Free-text search of attachments that feature Optical Character Recognition (OCR) also is supported.	Up to 5 searchable data elements
UAT/Training environment	Access to the Pondera UAT environment will remain open for Indiana FSSA users for the purposes of training. The System is regularly taken down for testing of new releases, patching, updates and other activities and will not always be accessible. These activities are generally confined to a few hours in normal circumstances. Additionally, the UAT environment may be a monthly cycle behind or ahead of the production system based on testing and deployments.	
Time & Activity Tracking	CaseTracker includes a standard employee time and case activity tracking functionality. This facilitates the seamless creation of employee routine timesheets and estimation of investigative costs.	No limit

C. **Training.**

1) WPC will conduct up to four (4) on-site (or remote, at the FSSA's discretion) training sessions to help stakeholders and users know how to use the System. Unless otherwise requested by the FSSA, WPC will hold separate training sessions for CaseTracker and FraudCaster; each training session typically requires two to four hours of stakeholder/user participation. WPC will provide this training on the actual system, including customized, screen-specific user manuals.

2) On an as-needed basis, WPC also will offer remote training in 30- to 60-minute intervals for any user(s) in need of additional training or to train new hires. These training sessions can be scheduled by request and are subject to availability of WPC training resources.

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3) Upon request by the FSSA, WPC will provide training for major updates or any new substantive functionality introduced after the initial System implementation.

4) WPC will provide an online User Manual for the System as well as field-specific user help embedded directly in WPC's FraudCaster and CaseTracker dashboards. User help also is available within the application in the form of contextual help and FAQs.

D. **Help Desk.** Throughout the term of this SOW, WPC will provide the following Help Desk support for the System:

1) Live phone support is available Monday through Friday from 8:00 am to 6:00 pm Eastern Time, excluding federal holidays. Access to the WPC electronic ticketing system is available 24 hours a day, 7 days a week, 365 days a year except for scheduled maintenance windows. WPC will respond to the support tickets submitted through the customer support portal during non-business hours in the next business day.

2) All authorized users can submit support requests via email, phone, or by directly logging them into the customer support portal. Submitting a support request via email automatically creates a support ticket and sends an acknowledgement email. Once a ticket is created, additional stakeholders / managers can monitor the status of support tickets at any time. Each support request must include:

a. A description of the issue and an assessment of its severity

b. A description of the events leading up to the need to create a support ticket (if applicable)

c. Screenshots of the dashboard or system screen related to the problem (if applicable).

3) Every support ticket receives a tracking number and is assigned to a support professional depending on its severity level. WPC identifies three support ticket severity levels based on urgency and impact. The following table indicates the severity levels for support tickets, a description of what defines the severity of a support ticket, and the response time for each severity level:

Issue Severity Level	Severity Level Description	Issue Response Time
High	An urgent issue that impacts all FSSA users of the System. The entire or partial use of the production System is impacted such that there is complete loss of service or System functionality for which there is no workaround.	Four (4) hours
Medium	An issue that impacts multiple FSSA users or a portion of the System. Use of the production System is impacted such that important features or functions do not operate properly but acceptable temporary workarounds exist. Normal operation can continue with workarounds.	One (1) business day
Low	An issue that impacts neither of the System nor the FSSA's user or access to the System such that the impact is an inconvenience or a minor deficiency. The overall performance and/or system integrity is unaffected.	Two (2) business days

E. **Special Investigations Unit (SIU) Support**. The SIU is the functional and investigative arm of WPC. WPC will assign a member of the SIU to work with the FSSA's

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investigations and enforcement staff. The FSSA may include WPC's assigned SIU member in their regular activities such as team meetings and enforcement debriefs.

The assigned SIU member will assist the FSSA in the following activities:

1) Working with the Help Desk to address requests for support
2) Interpreting the results from the System
3) Capturing FSSA requests for new functionality, data sources, and other constant improvement activities
4) Participating in other FSSA investigative and enforcement activities, as requested.
5) WPC is available at the FSSA's request to review summary results of these activities on a quarterly basis. Any major issue or finding will be discussed with the FSSA as such major issues are discovered.

F. **Hosting Services.** The System is hosted on the Microsoft Azure platform and data centers, which physically store all physical hosting equipment, communication media, server/hardware, application access, and data storage. While the subscription portal can successfully run in many Internet browsers, we recommend the use of Chromium-based browsers capable of supporting industry standard security protocols and ciphers.

As a Software-as-a-Service offering, there will be frequent, non-intrusive enhancements and updates to the System. The 'What's New' tab within the System includes a description of all new functionality. FSSA will be notified prior to implementation of enhancements and updates to the System as well as receive release notes for the changes being made for each release.

G. **Backup and Recovery Services.** WPC will perform encrypted file and database level backups. The encrypted backups are performed by the Azure Recovery Services Vault, are taken at the end of every business day and remain in the Azure data center. The storage system housing backup snapshots is an AES 256-bit Storage Access Network (SAN) storage device encrypted at rest.

H. **Set Up and Configuration Services.** WPC will provide set up and configuration services for the System specific to the FSSA's requirements. The System will leverage program data from the FSSA's own data systems. An initial output file for the previous three years will be used for FraudCaster.

I. **Transition Upon Contract Expiration or Termination.** Upon the expiration or earlier termination of this SOW, the WPC Information Security Officer will oversee the export of system results and/or case information as required by the FSSA. Following the successful export of the data, WPC will oversee the data destruction process in accordance with the FSSA's specific requirements or, absent a specified time period, no later than 30 days after the termination or expiration of this SOW.

2. DELIVERABLES AND SCHEDULE OF PERFORMANCE

A. WPC will provide the following implementation deliverables:

1) **Thomson Reuters Advanced Investigations CLEAR licenses** – WPC will deploy access to the Thomson Reuters CLEAR database for the number of Super Users specified in Section 1.A. The FSSA must establish a Virtual Private Network (VPN) for access to the FraudCaster dashboard with SuperSearch with CLEAR data integrated.
2) **Data Files Specifications Document** – WPC will provide a data files specifications document that details the program data required for the System implementation. It

describes entities and recipients, provides format detail, and describes the methodology for how data will be used in the System implementation.

3) **Master Design Document ("MDD")** – WPC will follow the WPC Requirements and Onboarding Process (PROP) for this project. The PROP includes structured technical and business fit-gap interviews to validate the FSSA's requirements. The PROP is used to configure dashboard components and thresholds, and to identify data sources required by FraudCaster. The result of the PROP is the MDD, which includes the final technical and functional requirements for the System. The MDD will be reviewed in detail with the FSSA and must be formally accepted before configuration work begins.

4) **Training** – WPC will deliver training as described in Section 1.C.

B. The deliverables described in Section 2.A above, will be deemed approved and accepted when the Acceptance Criteria for the applicable deliverable, as written in the table below, is met.

Deliverable	Acceptance Criteria
Thomson Reuters Advanced Investigations CLEAR licenses	Confirmed access by Super Users.
Data Files Specifications Document	The deliverable is accepted upon FSSA's receipt of the document.
Master Design Document	By signing the MDD, the FSSA accepts this deliverable.
User Training	User Training will be deemed accepted by the FSSA when WPC delivers and completes Go-Live Training sessions as described in the SOW along with providing required training materials and user manuals.

C. The deliverables identified in Section 2.A will be produced in accordance with the mutually agreed upon project schedule as may be amended from time to time by mutual written agreement of the parties. The below table reflects the estimated project schedule.

Milestone/Deliverable	Timeframe
Project Initiation:	Contract execution
Begin PROP/Requirements Sessions:	Contract execution + 30 calendar days
Receive Source Program Data:	Contract execution + 45 calendar days
SuperSearch (with CLEAR) Go-Live:	Contract execution + 45 calendar days
Final FraudCaster (FC) Master Design Document:	Completion of FC PROP sessions + 15 calendar days
Final CaseTracker (CT) Master Design Document:	Completion of CT PROP sessions + 15 calendar days
FC and CT Go-Live:	Completion of MDDs or Receipt of Source Data **(whichever is later)** + 120 calendar days
FC Scorecard Go-Live:	FC Go-Live + 30 calendar days

3. COMPENSATION AND PAYMENT TERMS

This SOW includes a 12-month subscription of the System. The first-year subscription fee is $372,000 for the System. This shall be payable in two (2) installments:

- 60% due upon execution of this SOW

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- 40% due upon System production operations

The subscription fee for the remaining one (1) year is payable on the first anniversary of this SOW.

Description	Cost
FraudCaster Subscription (with trafficking and fraud alert System) – Unlimited Users Includes: • 2 Super User licenses with CLEAR data integration	$288,000
CaseTracker Subscription – Up to 90 Users	$84,000
YEAR 1 TOTAL	**$372,000**

The subscription fee includes the configuration in the quantities for the base FraudCaster and CaseTracker products described in Section 1.

4. STATEMENT OF WORK MANAGERS

The Statement of Work Managers are responsible for deliverable sign-offs and other approvals as required by this SOW. The Statement of Work Managers are:

Indiana Family Social Services Administration	West Publishing Corporation, a Thomson Reuters company
Name, Title Email Phone	Tracy Miller, Senior Project Manager tracy.miller@thomsonreuters.com (651) 261-0744

5. FSSA'S RESPONSIBILITIES

The following are FSSA's responsibilities necessary for WPC to provide the services described in this SOW in a timely manner:

A. Staff Participation

1) Within seven (7) days of contract start, the FSSA will designate key project stakeholders who will participate in a kick-off session.

2) Within thirty (30) days of contract start, the FSSA will assign a technical resource who will provide WPC with the data necessary to configure the System according to approved project plan.

3) The FSSA will ensure functional and technical user participation during the PROP sessions to describe, answer questions, and share documentation regarding current processes, workflows and procedures; validate requirements; assist in establishing thresholds, configuring reports, and identifying sources of the FSSA data for the analytics; and approve deliverables.

4) The FSSA will provide WPC access to functional and technical staff to identify data from source data systems and to respond to functional and technical questions relating to database schemas, column names, and other technical aspects of the FSSA's data.

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5) The FSSA will provide functional user participation in quarterly meetings to review the results of the analytics, user statistics, and new data sources and system functions.

B. Data

1) Within forty-five (45) days of contract start, the FSSA will provide WPC with a minimum of three years of historical program data relating to applicants, recipients, households, benefit issuance, and retailers required to configure FraudCaster as specified in PROP session I.

2) The FSSA will provide reference descriptions for all reference codes in the data and data dictionaries for all the data delivered to WPC.

3) The FSSA will provide a diagram of the relational model as it pertains to the source tables delivered to WPC. This provides the primary and foreign key relations between the tables.

C. Data Integrity and Security

1) FraudCaster and CaseTracker are accessed through a secure VPN connection. Within thirty (30) days of contract start, the FSSA will establish the required VPN to provide WPC with the data necessary to configure the System.

2) The FSSA is responsible for the accuracy and completeness of source data. This includes identifying all appropriate source systems, understanding and labeling of data elements, and preparing complete and accurate sources files in a timely manner.

3) The FSSA will maintain a current list of individuals, and their roles, who are authorized to act and make decisions on behalf of the FSSA.

4) The FSSA will employ industry-standard safeguards, applicable to the size and complexity of the organization, to prevent the unauthorized use or disclosure of protected information obtained through the System or WPC's employees.

5) The FSSA will maintain industry-standard general IT computer and application controls, applicable to the size and complexity of the organization, in its computing environment to safeguard the confidentiality, integrity, and availability of protected data.

6) Within sixty (60) days of contract start, the FSSA will provide WPC with its data retention policy. If WPC does not receive FSSA's retention policy as stated, WPC will retain the FSSA data for the duration of an active subscription and will destroy it within 30 days of subscription termination.

7) Within 72 hours of an unauthorized use or disclosure of protected information (under applicable laws) provided by WPC, the FSSA will report any such event to ISO@WPCSolutions.com.

8) TR must meet the Federal Information Processing Standard 140-2 (FIPS 140-2) which specifies the security requirements that will be satisfied by a cryptographic module, providing four increasing, qualitative levels intended to cover a wide range of potential applications and environments. The areas covered, related to the secure design and implementation of a cryptographic module, include specification; ports and interfaces; roles, services, and authentication; finite state model; physical security; operational environment; cryptographic key management; electromagnetic interference/electromagnetic compatibility (EMI/EMC); self-tests; design assurance; and mitigation of other attacks.

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6. ASSUMPTIONS

WPC makes the following assumptions applicable to this SOW:

- All project timelines are based upon the identified delivery timelines for program data and technical/program feedback. Any delay in the delivery of the data or responses to clarifying questions surrounding the configuration of the data for the System, will result in delays to the proposed implementation schedule and may result in a change order. WPC will discuss with FSSA if we are approaching a timeline miss that may require a change order at least 15 days prior to issuing a change order. Our change control process includes the following steps:
  - Identify Change Request (CR) – Project team members identify and initiate a CR
  - Document the Change Request – The CR initiator documents the CR using a CR template which our project team will enter into the Jira Ticket(s) tracking system along with the reasoning, or business case, for the change
  - Assign and Analyze the CR – Under the direction of the WPC Project Manager, the documented CR is reviewed and analyzed (including scope, cost, schedule).
  - Review CR Scope and Cost – The WPC project leadership staff review the CR scope and cost in preparation for the change control board meeting.
  - Approve or Deny the CR – The change control board, consisting of key WPC team and FSSA staff will review the CR and determine if the change is approved, denied, or deferred
  - Prioritize and Communicate CR – The CR is communicated to the project team, and the WPC team and FSSA will mutually prioritize the timing of the implementation of the CR.
  - Update Project Schedule and Relevant Documentation – The project schedule is updated with the steps necessary for development, testing, training, deployment (if necessary) and the Jira ticket is updated with the resolution. Other affected project documentation is also updated.
- Any changes to the scope of work as described in Section 1 of this SOW may result in a change order.

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EXHIBIT 1
State of Indiana Additional Terms and Conditions
Software as a Service Engagements

Exhibit 1 to the Contract between the State acting through FSSA/DFR and the Contractor.

DEFINITIONS

Data means all information, whether in oral, written, or electronic form, created by or in any way originating with the State, and all information that is the output of any computer processing, or other electronic manipulation, of any information that was created by or that in any way originated with the State, in the course of using and configuring the Services.

Data Breach means any actual or reasonably suspected unauthorized access to or acquisition of Encrypted Data.

Encrypted Data means Data that that is required to be encrypted under the contract and Statement of Work.

Indiana Office of Technology means the agency established by Ind. Code § 4-13.1-2-1.

Information Security Framework means the State of Indiana's written policy and standards document governing matters affecting security and available at https://www.in.gov/iot/security/information-security-framework2/.

Security Incident means any actual or reasonably suspected unauthorized access to the contractor's system, regardless of whether contractor is aware of a Data Breach. A Security Incident may or may not become a Data Breach.

Service(s) means that which is provided to the State by contractor pursuant to this contract and the contractors obligations under the contract.

Service Level Agreement means a written agreement between both the State and the contractor that is subject to the terms and conditions of this contract. Service Level Agreements should include: (1) the technical service level performance promises (i.e. metrics for performance and intervals for measure); (2) description of service quality; (3) identification of roles and responsibilities; (4) remedies, such as credits; and (5) an explanation of how remedies or credits are calculated and issued.

Statement of Work means the written agreement between both the State and contractor attached to and incorporated into this contract.

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TERMS

1. Data Ownership: The State owns all rights, title, and interest in the Data. The contractor shall not access State user accounts or Data, except: (1) in the normal course of data center operations; (2) in response to Service or technical issues; (3) as required by the express terms of this contract, applicable Statement of Work, or applicable Service Level Agreement; or (4) at the State's written request.

Contractor shall not collect, access, or use Data except as strictly necessary to provide Service to the State. No information regarding State's use of the Service may be disclosed, provided, rented, or sold to any third party for any reason unless required by law or regulation or by an order of a court of competent jurisdiction. This obligation shall survive and extend beyond the term of this contract.

2. Data Protection: Protection of personal privacy and Data shall be an integral part of the business activities of the contractor to ensure there is no inappropriate or unauthorized use of Data at any time. To this end, the contractor shall safeguard the confidentiality, integrity, and availability of Data and shall comply with the following conditions:

a. The contractor shall implement and maintain appropriate administrative, technical, and organizational security measures to safeguard against unauthorized access, disclosure, or theft of Data. Contractor shall implement and maintain heightened security measures with respect to Encrypted Data. Such security measures shall be in accordance with Indiana Office of Technology practice and recognized industry practice, including but not limited to the following:

1. Information Security Framework; and

2. Indiana Office of Technology Cloud Product and Service Agreements, Standard ID: IOT-CS-SEC-010.

b. All Encrypted Data shall be subject to controlled access. Any stipulation of responsibilities shall be included in the Statement of Work and will identify specific roles and responsibilities.

c. The contractor shall encrypt all Data at rest and in transit. The State may, in the Statement of Work, identify Data it deems as that which may be publicly disclosed that is not subject to encryption. Data so designated may be maintained without encryption at rest and in transit. The level of protection and encryption for all Encrypted Data shall meet or exceed that required in the Information Security Framework.

d. At no time shall any Data or processes — that either belong to or are intended for the use of State — be copied, disclosed, or retained by the contractor or any party related to the contractor for subsequent use in any transaction that does not include the State.

e. The contractor shall not use any information collected in connection with the Services for any purpose other than fulfilling its obligations under the contract.

3. Data Location: Storage of Data at rest shall be located solely in data centers in the United States and the contractor shall provide its Services to the State and its end users solely from locations in the United States. The contractor shall not store Data on portable devices, including

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personal laptop and desktop computers. The contractor shall access Data remotely only as required to provide technical support. The contractor shall provide technical user support on a 24/7 basis unless specified otherwise in the Service Level Agreement.

4. Notice Regarding Security Incident or Data Breach:

a. Incident Response: contractor may need to communicate with outside parties regarding a Security Incident, which may include contacting law enforcement, fielding media inquiries, and seeking external expertise as mutually agreed upon, defined by law, or contained in the contract. Discussing Security Incidents and Data Breaches with the State must be handled on an urgent basis, as part of contractor's communication and mitigation processes as mutually agreed upon in the Service Level Agreement, contained in the contract, and in accordance with IC 4-1-11 and IC 24-4.9 as they may apply.

b. Security Incident Reporting Requirements: The contractor shall report a Security Incident to the State-identified contact(s) as soon as possible by telephone and email, but in no case later than two (2) days after the Security Incident occurs. Notice requirements may be clarified in the Service Level Agreement and shall be construed in accordance with IC 4-1-11 and IC 24-4.9 as they may apply.

c. Data Breach Reporting Requirements: If a Data Breach occurs, the contractor shall do the following in accordance with IC 4-1-11 and IC 24-4.9 as they may apply: (1) as soon as possible notify the State-identified contact(s) by telephone and email, but in no case later than two (2) days after the Data Breach occurs unless a shorter notice period is required by applicable law; and (2) take commercially-reasonable measures to address the Data Breach in a timely manner. Notice requirements may be clarified in the Service Level Agreement. If the Data involved in the Data Breach involves protected health information, personally identifying information, social security numbers, or otherwise confidential information, other sections of this contract may apply. The requirements discussed in those sections must be met in addition to the requirements of this section.

5. Responsibilities Regarding Data Breach: This section applies when a Data Breach occurs with respect to Encrypted Data within the possession or control of the contractor.

a. The contractor shall: (1) cooperate with the State as reasonably requested by the State to investigate and resolve the Data Breach; (2) promptly implement necessary remedial measures, if necessary; and (3) document and provide to the State responsive actions taken related to the Data Breach, including any post-incident review of events and actions taken to make changes in business practices in providing the Services, if necessary.

b. Unless stipulated otherwise in the Statement of Work, if a Data Breach is a result of the contractor's breach of its contractual obligation to encrypt Data or otherwise prevent its release as reasonably determined by the State, the contractor shall bear the costs associated with: (1) the investigation and resolution of the Data Breach; (2) notifications to individuals, regulators, or others required by federal and/or state law, or as otherwise agreed to in the Statement of Work; (3) a credit monitoring service required by federal and/or state law, or as otherwise agreed to in the Statement of Work; (4) a website or a toll-free number and call center for affected individuals required by federal and/or state law — all of which shall not amount to less than the average per-record per-person cost calculated for data breaches in the United States (in, for example, the most recent Cost of Data Breach Study: Global Analysis published by the Ponemon Institute at the time of the Data Breach); and (5) complete all corrective actions as

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reasonably determined by contractor based on root cause and on advice received from the Indiana Office of Technology. If the Data involved in the Data Breach involves protected health information, personally identifying information, social security numbers, or otherwise confidential information, other sections of this contract may apply. The requirements discussed in those sections must be met in addition to the requirements of this section.

6. Notification of Legal Requests: If the contractor is requested or required by deposition or written questions, interrogatories, requests for production of documents, subpoena, investigative demand or similar process to disclose any Data, the contractor will provide prompt written notice to the State and will cooperate with the State's efforts to obtain an appropriate protective order or other reasonable assurance that such Data will be accorded confidential treatment that the State may deem necessary.

7. Termination and Suspension of Service:

a. In the event of a termination of the contract, the contractor shall implement an orderly return of Data in a mutually agreeable and readable format. The contractor shall provide to the State any information that may be required to determine relationships between data rows or columns. It shall do so at a time agreed to by the parties or shall allow the State to extract its Data. Upon confirmation from the State, the contractor shall securely dispose of the Data.

b. During any period of Service suspension, the contractor shall not take any action that results in the erasure of Data or otherwise dispose of any of the Data.

c. In the event of termination of any Services or contract in its entirety, the contractor shall not take any action that results in the erasure of Data until such time as the State provides notice to contractor of confirmation of successful transmission of all Data to the State or to the State's chosen vendor.

During this period, the contractor shall make reasonable efforts to facilitate the successful transmission of Data. The contractor shall be reimbursed for all phase-out costs (i.e., costs incurred within the agreed period after contract expiration or termination that result from the transfer of Data or other information to the State). A reimbursement rate shall be agreed upon by the parties during contract negotiation and shall be memorialized in the Statement of Work. After such period, the contractor shall have no obligation to maintain or provide any Data and shall thereafter, unless legally prohibited, delete all Data in its systems or otherwise in its possession or under its control. The State shall be entitled to any post-termination assistance generally made available with respect to the Services, unless a unique data retrieval arrangement has been established as part of a Service Level Agreement.

d. Upon termination of the Services or the contract in its entirety, contractor shall, within 30 days of receipt of the State's notice given in 7(c) above, securely dispose of all Data in all of its forms, including but not limited to, CD/DVD, backup tape, and paper. Data shall be permanently deleted and shall not be recoverable, according to National Institute of Standards and Technology (NIST)-approved methods. Certificates of destruction shall be provided to the State upon completion.

8. Background Checks: The contractor shall conduct a Federal Bureau of Investigation Identity History Summary Check for each employee involved in provision of Services: (1) upon commencement of the contract; (2) prior to hiring a new employee; and (3) for any employee upon the request of the State. The contractor shall not utilize any staff, including subcontractors,

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to fulfill the obligations of the contract who have been convicted of any crime of dishonesty, including but not limited to criminal fraud, or otherwise convicted of any felony or misdemeanor offense for which incarceration for up to one (1) year is an authorized penalty. The contractor shall promote and maintain an awareness of the importance of securing the State's information among the contractor's employees, subcontractors, and agents. If any individual providing Services under the contract is not acceptable to the State, in its sole opinion, as a result of the background or criminal history investigation, the State, in its sole option shall have the right to either: (1) request immediate replacement of the individual; or (2) immediately terminate the contract, related Statement of Work, and related Service Level Agreement.

9. Access to Security Logs and Reports: The contractor shall provide to the State reports on a schedule and in a format specified in the Service Level Agreement as agreed to by both the contractor and the State. Reports shall include latency statistics, user access, user access IP address, user access history, and security logs for all Data. The State's audit requirements shall, if applicable, be defined in the Statement of Work.

10. Contract Audit: The contractor shall allow the State to audit conformance to the contract terms. The State may perform this audit or contract with a third party at its discretion and at the State's expense.

11. Data Center Audit: The contractor shall perform an annual independent audit of its data center(s) where Data, State applications, or other State information is maintained. The contractor shall perform this independent audit at its expense and shall, upon completion, provide an unredacted version of the complete audit report to the State. (The contractor may redact its proprietary information from the unredacted version, however.) A Service Organization Control (SOC) 2 audit report or equivalent approved by the Indiana Office of Technology sets the minimum level of a third-party audit.

The State may perform an annual audit of contractor's data center(s) where Data, State applications, or other State information is maintained. The audit may take place onsite or remotely, at the State's discretion. The State shall provide to contractor thirty (30) days' advance notice prior to the audit. The contractor will make reasonable efforts to facilitate the audit and will make available to the State members of its staff during the audit. The State may contract with a third party to conduct the audit at its discretion and at the State's expense. If the contractor maintains Data, State applications, or other State information at multiple data centers, the State may perform an annual audit of each data center.

The parties agree that any documents provided to the State under this paragraph shall be deemed a trade secret of contractor and is deemed administrative or technical information that would jeopardize a record keeping or security system and shall be exempt from disclosure under the Indiana Access to Public Records Act, IC 5-14-3.

12. Change Control and Advance Notice: The contractor shall give notice to the State for change management requests. Contractor shall provide notice to the State regarding change management requests that do not constitute an emergency change management request at least two (2) weeks in advance of implementation. Contractor shall provide notice to the State regarding emergency change management requests no more than twenty-four (24) hours after implementation.

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Contractor shall make updates and upgrades available to the State at no additional cost when contractor makes such updates and upgrades generally available to its users. No update, upgrade, or other change to the Service may decrease the Service's functionality, adversely affect State's use of or access to the Service or increase the cost of the Service to the State.

13. Security: Pursuant to https://www.in.gov/fssa/thehub/files/FSSA_Privacy_Compliance.pdf, the contractor shall, on an annual basis, disclose its non-proprietary system security plans or security processes and technical limitations to the State such that adequate protection and flexibility can be attained between the State and the contractor. For example: virus checking and port sniffing. The State and the contractor shall share information sufficient to understand each other's roles and responsibilities. The contractor shall take into consideration feedback from the Indiana Office of Technology with respect to the contractor's system security plans.

The parties agree that any documents provided to the State under this paragraph shall be deemed a trade secret of contractor and is deemed administrative or technical information that would jeopardize a record keeping or security system and shall be exempt from disclosure under the Indiana Access to Public Records Act, IC 5-14-3. This section is further governed by the policies and procedures outlined in https://www.in.gov/fssa/thehub/files/FSSA-Combined-IS-Policy_Final_V1-upd.pdf, as well as https://www.in.gov/iot/policies-procedures-and-standards/.

14. Non-disclosure and Separation of Duties: The contractor shall enforce role-based access control, separation of job duties, require commercially reasonable nondisclosure agreements, and limit staff knowledge of Data to that which is absolutely necessary to perform job duties. The contractor shall annually provide to the State a list of individuals that have access to the Data and/or the ability to service the systems that maintain the Data.

15. Import and Export of Data: The State shall have the ability to import or export Data in piecemeal or in entirety at its discretion, with reasonable assistance provided by the contractor, at any time during the term of contract. This includes the ability for the State to import or export Data to/from other parties at the State's sole discretion. Contractor shall specify in the Statement of Work if the State is required to provide its' own tools for this purpose, including the optional purchase of contractor's tools if contractor's applications are not able to provide this functionality directly.

16. Responsibilities and Uptime Guarantee: The contractor shall be responsible for the acquisition and operation of all hardware, software, and network support related to the Services being provided. The technical and professional activities required for establishing, managing, and maintaining the environments are the responsibilities of the contractor. Subject to the Service Level Agreement, the Services shall be available to the State at all times. The contractor shall allow the State to access and use the Service to perform synthetic transaction performance testing.

The contractor shall investigate and provide to the State a detailed incident report regarding any unplanned Service interruptions or outages. The State may terminate the contract for cause if, at its sole discretion, it determines that the frequency of contractor-preventable outages is sufficient to warrant termination.

17. Subcontractor Disclosure: Contractor shall identify all of its strategic business partners related to Services, including but not limited to all subcontractors or other entities or

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individuals who may be a party to a joint venture or similar agreement with the contractor, and who may be involved in any application development and/or operations.

The contractor shall be responsible for the acts and omissions of its subcontractors, strategic business partners, or other entities or individuals who provide or are involved in the provision of Services.

18. Business Continuity and Disaster Recovery: The State's recovery time objective shall be defined in the Service Level Agreement. The contractor shall ensure that the State's recovery time objective has been met and tested as detailed in the Service Level Agreement. The contractor shall annually provide to the State a business continuity and disaster recovery plan which details how the State's recovery time objective has been met and tested. The parties agree that any documents provided to the State under this paragraph shall be deemed administrative or technical information that would jeopardize a record keeping or security system and shall be exempt from disclosure under the Indiana Access to Public Records Act, IC 5-14-3. The contractor shall work with the State to perform an annual disaster recovery test and take action to correct any issues detected during the test in a time frame mutually agreed upon between the contractor and the State in the Service Level Agreement.

The State's Data shall be maintained in accordance with the applicable State records retention requirement, as determined by the State. The contractor shall annually provide to the State a resource utilization assessment detailing the Data maintained by the contractor. This report shall include the volume of Data, the file formats, and other content classifications as determined by the State.

19. Compliance with Accessibility Standards: The contractor shall comply with and adhere to Accessibility Standards of Section 508 Amendment to the Rehabilitation Act of 1973, or any other state laws or administrative regulations identified by the State.

20. State Additional Terms and Conditions Revision Declaration: The clauses in this Exhibit have not been altered, modified, changed, or deleted in any way except for the following clauses which are named below:

13. Security. Modified.